

# LESSONS ON LEGAL TERMINOLOGIES

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**General**

**Introduction**



# **General**

## **Introduction**

The study of political systems in the contemporary world is a matter of extremely important, given the growing number of independent states on the one hand, as well as the independence of each State in its system of its own political and constitutional law on the other.

If the study of constitutional law is a study of the political system from the legal point of view, modern jurisprudence considers that only the study of constitutional texts is no longer sufficient to study the political system, because the legal aspect is only one aspect of the political system which contains other social, economic and cultural aspects.

Hence, the political system of a country can only be explained by reference to its economic and social system,

degree of progress, prevailing beliefs, values and cultural traditions of its people. Therefore, it is not enough just to refer to the constitutional texts codified to understand the nature of the system, as the constitutional law, as mentioned above, is limited to study the texts contained in the constitutional documents governing the manner of governance in a country, while the political systems go beyond that those standards address how the constitutional institutions progress in the economic, social and cultural circumstances surrounding it.

### **= Plan of study:**

The study of political systems linked to public power in society, and the subordination of this power to general principles and grounds related to basis and means of exercise and its relationship to individuals.

We will divide our study of political systems into three chapters; deal in the first of them the study of the

state in terms of its composition, types and the basis of political power.

In the second one, we present the study of the government by means of a description of the different forms of government and the methods of attribution of governance.

The third chapter will devote to study the organization of the ruling authorities and forms of parliamentary governments. Depending on the following division:

Chapter One: The State.

Chapter Two: The government.

Chapter Three: Organization of the ruling authorities and forms of representative governments.





# **Chapter one**

## **The State**



# **Chapter one**

## **The State**

Every political organization assumes that there is a group that organized by it and sets rules of conduct there. At present, the state is the familiar image of the political group. Therefore, we are dealing with the study of the state as the framework within which the political system is established and the sphere in which public authority is exercised.

We will divide this chapter into four sections, the first of which will deal with the definition of the State and its elements. The second is to determine the origin of the state and the basis of its political power. And we are exposed in the third section to the statement of the types of states, and then in the fourth section we address the limits of state authority, so as follows:

## **Section 1**

### **Definition of the State and its Elements**

In this regard, we address the definition of the State and the statement of its elements in two sub-sections, respectively. As follows:

#### **Subsection 1; Definition of the State**

Scholars differed in their definition of the state, and did not settle for a specific definition, due to their differences in the criteria on which they base the definition of the state and the legal ideas that govern it. Despite this disagreement about the definition of the state, but the majority of those definitions agree on the basic corners or pillars of the state ... and will supply some of these definitions at the level of French and Egyptian jurisprudence.

At the level of French doctrine, some defines the State as a legal diagnosis of a nation, while defined by others as a group of individuals stable on a given territory and has organized what makes that group supreme authority has the right of command in the face of individuals.

In terms of Egyptian jurisprudence, some defined the state as: "a legal person who represents a nation that inhabits a certain territory and has general authority or sovereignty, as others have defined it as" a group of individuals who permanently occupy a certain geographical territory and are governed by a political authority based primarily on persons who exercise it .

It is enough to quote the previous definitions, since the rest of the definitions do not come out of their content.

By reading the previous definitions, it is clear that they require the existence of three essential elements on

which the State is based: the people, the territory and political power.

## **Subsection2: Elements or corners of the state**

The state is defined as a "group of individuals who permanently and geographically occupy a certain geographical territory and are regulated in their affairs by a political authority based primarily on persons who exercise it."

It is clear from this definition that the state is based on three corners or elements: the people, the region or territory and the political authority.

### **(1) People**

It represents the first corner of the state, where we cannot imagine the existence of a state without the people. And the people mean the individuals composing the state and who reside on its territory and carrying its nationality. Thus, foreigners who reside on the land of the state, even

if they are included in the population, are not counted among the people.

It should be noted that are not required a certain number of individuals to realize the people's corner and the establishment of the state. Some countries do not exceed a few thousand people, such as the Principality of Monaco and the Vatican, while in others, such as China and India, the number of people exceeds several hundred million. Consequently, there is no minimum number of members of the public, although it is logical that this number will be reasonable so that the state can arise. The large number of people is often a factor in increasing the strength of the state and its external status and influence in the international arena.

**\* People and Nation:**

It is said that the people are the sum of the individuals who make up the State and who reside on its territory and hold its nationality, but not required to be

collected under one language or religion or shared history. There are many countries that speak their peoples in different languages and condemn different religions such as India, Switzerland, Canada and most African countries.

The nation is a human group that has different ties; Material and spiritual, as a unit of origin, language, religion, customs, traditions and common hopes, which distinguishes the nation from other groups.

Thus, the nation can be defined as "a group of people who are stable on a certain spot of land, united by the common desire to live together." A nation is based on two elements: a material element is the stability of a certain part of the earth, and a moral element is the common desire to live together. Alongside these two essential elements of the existence of the nation are other elements of assistance such as unity of origin, language, religion, customs, traditions and common sentiments.



From the above, it is clear the difference between the people and the nation. The people are a political phenomenon as one of the pillars of the state, the human element, so that the state is connected to existence and nothing. The existence of the people does not require the unity of origin, language, religion or common history. This is in contrast to the nation, which is considered a social phenomenon as a human group that has certain ties as a unit of origin, language, religion and history.

**\* People and Population:**

Some confuse the terms of the people and the population and give them one although they differ from each other.

The people are considered one of the pillars of the state as we have said. And people of a social concept. It refers to the individuals who reside on the territory of the state and enjoy nationality.

The concept of the population of the State is broader than the concept of the people because the concept of the population goes to all those who reside on the territory of the State, whether they are its own people or foreigners who have only the association of residence with the State.

Thus, the term population is broader than the term "people" as described above, so that they are separated from one another.

## **(2) Territory**

It is not enough for the state to have the first pillar, which is the people. It also requires a second corner, which is a patch of land on which the people of the state will reside permanently and in a stable state.

The Territory is a necessary element for the existence of the State. The resulting is that the failure to recognize the state's description of the nomadic tribes

because of their instability in a particular land, i.e., the inferiority of the territory.

And does not require a certain area of land for the availability of the corner of the territory, countries vary in size and territory as is the case for the people.

The territory of the State determines the scope or scope in which the State exercises its authority over both persons and objects. It was therefore necessary to define a specific area for each State exercising its sovereignty and authority.

**\* Components of State territory:**

The territory of the State is not confined to land only but extends to the territorial sea, the air classes above the land and the territorial sea.

Therefore, the Territory includes a land area, water, and a third air.

1- Ground Territory: is the dry part of the land which left untouched state borders and the underlying this part of the natural landmarks as plains, valleys, lakes and rivers, and includes the underground and its content of the natural wealth and resources.

2 - Water Territory: Water region is available for coastal States, which is in the coastal waters adjacent to the coasts of the state, that is called Regional Sea. Countries differ in determining the distance to which the territorial sea extends between 3 miles and 12 nautical miles. Bearing in mind that the watershed is not confined to the surface of the territorial waters only, but also includes the bottom of that water and below it.

3 - Air Territory: The air space, which is above both regions ground and water. Each State has sovereignty over its airspace. This sovereignty is restricted only by the innocent passage of civilian aircraft under the provisions of international agreements.

### **(3) Sovereign political power**

It is not enough for the state to have the constituents of the people and the region alone, but also the existence of a supreme sovereign authority to which the political group is subject. The corner of sovereignty or political power is the most important element of the state and its distinctive component, so that political authority exercises the manifestations of sovereignty over the region and those who reside there.

The sovereign element in question is that the authority of the State is an original authority which does not derive its origin from another authority. It is also an indivisible unit regardless of the various governing bodies of the State "because these multiple bodies do not share power but share the competences.

**\* Manifestations of state sovereignty:**

Sovereignty as a unique feature of political power in the state has both external and internal features.

1 - External sovereignty means the non-subordination of the state to another state, i.e., that the state be independent and deal on an equal footing with other countries, and not subject to any international restrictions except treaties or international agreements in this regard. Thus, the external sovereignty is synonymous with its independence.

2 - The internal sovereignty means that the authority of the State, in the exercise of its activities within the borders of its territory, in relation to individuals or groups that reside on its territory without presence of another authority superior to it, and that this authority imposed on everyone within the territory of the State. Thus, the full sovereignty of the State means its external independence and its dominion at home.

### **\* For those who are sovereign?**

Sovereignty is only the sum of attributes that characterize political power in the state. Since the state legal person simply cannot be said that the State is sovereign. Here arises the question of who has this sovereignty, i.e. the right holder to exercise the sovereignty of the state and the actual possessor.

To answer this question, we will address the study of the theory of national sovereignty and the sovereignty of the people. As follows:

#### **First: the theory of the rule of the nation**

The theory of the rule of the nation is the creation and invention of the philosophers of the French Revolution to justify the expropriation of sovereignty from the kings and return it to the sovereign nation. Thus, this theory was a reaction against absolute kings' domination before the revolution.

The idea of this theory is that the sovereignty of the nation as an abstract unit independent of its constituent individuals, and sovereignty as a single unit indivisible ... Thus, no individual has to specialize part of sovereignty because sovereignty is not for independent individuals, but the nation as an independent collective For the group of its constituents.

The Declaration on the Rights of Man and Citizen issued by the French Revolution in 1789 emphasized the principle of the sovereignty of the nation among its texts. In article 3, it states: "The nation is the source of all sovereignty, and no individual or body may exercise power that is not expressly issued by the nation. The French Constitution of 1791 as stipulated in the first and second article on that. "The nation is the source of all authorities, and that the sovereignty is one unit doesn't accept retail nor waived and not ownership overtime, it belongs to the nation.



= The consequences of the principle of the sovereignty of the nation:

1 - The nation's sovereignty is indivisible, it is owned by nation as an independent legal person from the total individuals' component to him. It is thus impossible to divide this sovereignty over individuals, but one must be chosen to express that sovereignty.

It was therefore said that the principle of the sovereignty of the nation was in contradiction with the system of direct, semi-direct democracy, while this principle is compatible with the system of parliamentary democracy, where the role of the people is limited to the selection of deputies who are independent of their constituents in running the affairs of governance.

2 - That the choice of the rulers by the people does not really consider a right but it is just a duty or function. Because as long as the individual does not have a part of sovereignty, he cannot claim that he has a right to choose

the ruler, but that this is nothing more than a job or a public service for the nation itself.

It follows that the nation should determine the conditions required in the electorate so as to ensure good selection of who exercise power.... which entails to say that the principle of the sovereignty of the nation in accordance with the principle of restricted ballot, without universal suffrage, in the sense to restrict voting to certain conditions must be met in The voter as a condition of education, possessing a certain financial quorum or belonging to a particular class so that he may choose who exercises power.

3 - Since the principle of the sovereignty of the nation is based on the grounds that the nation is independent unit devoid of its members, this effect is not limited to a certain period or a particular generation, but it is true of the nation in its past, present and future.

4 - According to the theory of the rule of nation, the MP does not represent his constituency, but represents the entire nation. The MP does not express the will of his constituents or his constituency, but rather expresses the will of the nation. Therefore, the MP must work for the benefit of the entire nation, not only for the benefit of his constituency, in the sense of preference of the deputy for the public interest on the interests of voters and his constituency in the event of conflict between them.

## **Second: Theory of the rule of the people**

The premise of this theory is that sovereignty is the property of the whole population, so that every member of the people has a part of that sovereignty. The difference between this theory and the theory of nation supremacy is that the theory of nation sovereignty makes the sovereignty of the nation independent of its constituents, while the theory of the sovereignty of the people renders

sovereignty over the entire population so that sovereignty can be divided among the people.

In the concept of this theory, the people mean the people in the political sense, the sum of individuals who enjoy their political rights and are the electorate.

= The consequences of the theory of people's sovereignty:

1 - The theory of the rule of the people is consistent with the system of direct democracy and semi-direct democracy. The sovereignty, according to this theory is for the individuals themselves by where each of them has a part of sovereignty. Thus, the people have the right to exercise power themselves without the mediation of one, as in the case of direct democracy. It can also refer to the people to exercise some semblance of power as referendum, People's proposal and the People objection satisfied with the images of semi - direct democracy.

Some have argued that the theory of the sovereignty of the people is more in line with the ideals of democracy that presuppose the exercise of sovereignty by the people themselves.

2 - The election according to the theory of the rule of the people is not a function or a duty as it is in the theory of the sovereignty of the nation, but it is the right of individuals as each of them has a part of sovereignty. Individuals cannot be deprived of the right to vote because of wealth, education or belonging to a particular class, as in the theory of nation sovereignty.

It follows that the theory of the rule of the people conforms to the principle of universal suffrage without restriction.

3 - MP is - according to the theory of sovereignty of the people - an agent for his constituents of his constituency, and not for the whole nation as the case in the nation's sovereignty theory.

This is explained by the fact that the MP represents part of the sovereignty held by the electorate, and is therefore bound by a mandatory agency that allows them to impose their will on the MP who is obliged to act according to their directions. Otherwise, they would have to isolate him if he went beyond the boundaries of that agency.

## Vocabulary of (Chapter 1- Section 1)

### A

Abstract

نبذة مختصرة

Actual possessor

الحائز الفعلي

Adjacent

مجاور

Affairs

شؤون

Air Territory

الإقليم الجوي

Aircraft

الطائرات

Alongside

جنباً إلى جنب

Arena

حلبة

Argue

يجادل

Aspects

جوانب

Assistance

مساعدة

Assumes

|                           |                   |
|---------------------------|-------------------|
| يفترض                     | Coastal States    |
| Attribution of government | الدول الساحلية    |
| إسناد الحكومة             | Common sentiments |
| B                         | مشاعر مشتركة      |
| Bearing in mind           | Compatible with   |
| مع الأخذ في الاعتبار      | متوافق مع         |
| Beyond                    | Competences       |
| خلف                       | كفاءات            |
| Borders                   | Condemn           |
| حدود                      | شَجَبَ            |
| Boundaries of that agency | Conforms to       |
| حدود تلك الوكالة          | يتوافق مع         |
| C                         | Confuse           |



| يختص بـ                                      | يخط                |
|----------------------------------------------|--------------------|
| Declaration on the Rights of Man and Citizen | Consequences       |
| إعلان حقوق الإنسان والمواطن                  | آثار               |
| Deprived                                     | Constituents       |
| محروم                                        | الناخبين           |
| Deputy for                                   | Contemporary world |
| نائب لـ                                      | العالم المعاصر     |
| Desire                                       | Contradiction      |
| رغبة                                         | تناقض              |
| Devoid of its members                        | Criteria           |
| خالية من أعضائها                             | معايير             |
| Different religions                          | Dealing with       |

|                |                |                     |  |
|----------------|----------------|---------------------|--|
|                | ديانات مختلفة  | يتضمن               |  |
| Different ties |                | Equal footing       |  |
|                | علاقات مختلفة  | على قدم المساواة    |  |
| Distinctive    |                | Expropriation       |  |
|                | مميز           | مصادرة              |  |
| Dominion       |                | F                   |  |
|                | سلطان          | Financial quorum    |  |
| E              |                | النصاب المالي       |  |
| Electorate     |                | Foreigners          |  |
|                | جمهور الناخبين | أجانب               |  |
| Emphasized     |                | Framework           |  |
|                | أكد            | الإطار              |  |
| Entails        |                | French Constitution |  |

G

الدستور الفرنسي

Go beyond

يذهب إلى أبعد من ذلك

Ground region

الإقليم الأرضي

I

In the concept of

في مفهوم

In this regard

في هذا الصدد

Independent states

الدول المستقلة

Indivisible

لا يتجزأ

Inferiority

عقدة النقص

Innocent passage

مرور برئ

L

Land area

الإقليم الأرضي

M

Manifestations

مظاهر

Mediation

|                         |                      |                         |  |
|-------------------------|----------------------|-------------------------|--|
|                         | وساطة                | الديموقراطية البرلمانية |  |
|                         | Modern jurisprudence | Passage of civilian     |  |
|                         | الفقه الحديث         | مرور المدنيين           |  |
| N                       |                      | People 's proposal      |  |
| Nautical                |                      | اقتراح شعبي             |  |
|                         | بحري                 | Pillars or corners      |  |
| Nomadic tribes          |                      | أعمدة أو أركان          |  |
|                         | قبائل بدوية          | Political power         |  |
| O                       |                      | السلطة السياسية         |  |
| Organizes it            |                      | Population              |  |
|                         | ينظم                 | تعداد السكان            |  |
| P                       |                      | Presuppose              |  |
| Parliamentary democracy |                      |                         |  |

|                    |                   |                        |
|--------------------|-------------------|------------------------|
|                    | استلزم            | إقامة                  |
| Prevailing beliefs |                   | Respectively           |
|                    | المعتقدات السائدة | على التوالي            |
| <b>R</b>           |                   | Restricted             |
| Reference          |                   | محدد                   |
|                    | مرجع              | Restrictions           |
| Regardless         |                   | قيود                   |
|                    | بغض النظر         | Restriction            |
| Render             |                   | تقييد                  |
|                    | يجعل              | Revolution             |
| Reside             |                   | ثورة                   |
|                    | يقيم              | Running the affairs of |
| Residence          |                   | government             |

S

إدارة شؤون الحكومة

مخصص لـ

Selection of deputies

Spiritual

روحي

اختيار النواب

Stipulated

Semblance

منصوص عليها

مظهر

Subordination

Social concept

تبعية

مفهوم اجتماعي

Summarized

Sovereign political power

ملخص

السلطة السياسية السيادية

Supreme authority

Sovereignty

سلطة عليا

سيادة

Synonymous

Specialize to

مرادف

T

Territory

منطقة

people

نظرية سيادة الشعب

The sphere

المجال

Therefore

وبالتالي

The theory of the rule of

the nation

نظرية سيادة الأمة

Thus

لذلك

To realize

يدرك

The voter

الناخب



Underlying

Theory of nation supremacy

نظرية سيادة الأمة

Unique

في ظل

Theory of the rule of the

فريد من نوعه

Unit

وحدة

Water region

الإقليم المائي

Universal suffrage

الاقتراع العام

Watershed

نقطة تحول

Unrestricted ballot

الاقتراع غير المقيد

Wealth

ثروة

Untouched state borders

حدود الدولة التي لا تُمسّ

W



## **Section 2**

### **The origin of the state and the basis of its political power**

The search in the origin of political power and its basis is mixed with the research in the origin of the emergence of the state. If it is possible to differentiate between them theoretically on the basis that the first is a legal investigation aims to determine the base on which the subordination of the individuals to the rulers stands, while the second is the nature of historical and social research, which aims to trace the incidents and identify the means that led to the emergence of the idea of the state.

However, it is difficult to separate the two in practice, given the close connection between the emergence of the State and the basis of political power. It is true to say that the various theories that were said on

the subject of the origin of the state at the same time serve to indicate the basis on which the authority is based, and vice versa.

There have been many theories that explain the emergence of the state and the basis of political power in it, and suffice here to list the most important in five investigations as follows:

### **Subsection 1; Theocratic theories (theories of the divine source of power)**

Theocratic theories refer the power of the state to God. God is the source of authority in the state. He chooses the rulers who exercise the authority directly or indirectly. The proponents of these theories although agreed to assign authority to God, but they differed in the foundations on which to choose who exercises the power from the rulers to three directions, as follows:

### **First: the theory of deification of rulers.**

This theory considers the ruler is of a divine nature, he does not derive his authority from the god because he is the god or semi-god. This theory has been popular in ancient civilizations such as Pharaonic civilization, Babylon and Assyria, as well as in China, India and ancient Greece. This theory was applied in the modern era in Japan prior to World War II, when the Japanese worshiped the Emperor or Mikado.

### **Second: The theory of direct divine right.**

This theory explains that the state of God's creation. The ruler, though human, only derives his authority directly from God, who captures him and chooses him to rule the people. Therefore, the choice of the ruler is a divine command that is outside the will of the human beings and they have no input in it. So, the rulers are not responsible to their nationals if they sin, but ask before God who authorized them to power.

It is clear that this theory is just a justification for the rule of absolute tyranny that prevailed in the Middle Ages and in the seventeenth and eighteenth centuries in Europe. The King of France Louis XIV has expressed about this theory by the famous saying " the state is I am."

### **Third: the theory of indirect divine truth.**

According to this theory, the ruler does not derive his authority directly from God, but derives it indirectly, in the sense that God does not choose the ruler directly but indirectly by directing divine providence of accidents in a manner leading to the choice of a particular ruler. The divine attention arranges accidents, sequences and orients the wills of individuals and drives it toward the choice of a particular person or a particular family to rule the state, and therefore the people - according to this theory - only just the performance to carry out the divine will.

Hence, the ruler takes power by the people, but under the guidance of divine providence by the indirect divine right.

## **Subsection2: Power Theory**

Supporters of this theory believe that the state is of making power and violence. The state arises when person has a power imposes control over the rest of the individuals who subordinate to his strength, and then the state is a superimposed system, by the path of violence.

Also, the proponents of this theory believe that history incidents witnessing that especially ancient history. In that Plutarch says; “the oldest laws governing the world is that the most powerful is who rule and control over the weak.”

History is often, proves to us that the force element has always been an effective element in the emergence of countries.

In fact, we cannot delivery this theory on its launch just that some incidents of history attest to it, because force alone cannot always achieve stability of the state, but needs to earn individual satisfaction and acceptance of them. The group, which is based on the force only in its existence, is an illegal group because they are based on unlawfully seized and aggression.

### **Subsection3: The theory of familial evolution**

Supporters of this theory believe that the basis of the state is the family, and the basis of the ruling authority of which is due to the authority of the head of the family.

The family - according to this theory - is the first cell of society, including the clan formed tribe, and the tribe has evolved into the city and finally the state, which is ultimately in the social organization.

Theoretical owners support their idea as there is some similarities between the political community and the

family. Solidarity and collective national spirit which blend between the members of the State or "generally political group", can be likened with family spirit linking family members. The father's authority over his family members waving like a natural nucleus of the ruling power in the state.

However, this theory has been criticized for many as follows:

1 - The theory based on the ground that the family is the first nucleus of the human community, and that parental authority is the origin of political power. Both hypotheses Sinful because sociology proves that the family is not the first cell of society and that the family did not exist, without the existence of the group and as a result of its organization. The mother's authority was prior to the authority of the father of barbarism, especially in the first ages.

2 - The different nature of power in both the family and the state, as a result of the different objective of each. Parental authority is aimed to protect the family and defends it against its enemies, but it is a personal authority of the people associated with the head of household and its members. Thus, the Lord of the authority of the family goes away with his death or reaching of children the age which enables them to independence with their livelihood.

On the contrary, the political power in the state is an abstract authority is not linked to rulers themselves because the goals of the state are long - term not only to satisfy the desires of a particular generation, but it extends over the succession of generations.

3 - The history incidents do not support the veracity of this theory on its launch, where there are many ancient countries that emerged in its inception from the base established by the theory. For example, the ancient



Egyptian state, and the state of the Persians, where both countries have emerged without passing with civilian political system known by ancient Greece.

At present, there are many countries that grew up without passing through the previous development, among them, for example, the United States of America.

#### **Subsection4: The theory of historical or natural development**

This theory is based on that the political group offspring of multiple factors interacted over time so that the state originated. Therefore, the state and its authority is the result of multiple factors that vary from state to state depending on the circumstances of each country.

Thus, every society is composed according to its own circumstances; the historical, economic, social and political ones. This entails the inadmissibility of the origin of the state and the attribution of political power

according to general rule for all nations, but should discuss this topic for each individual country.

Supporters of this theory believe that the state is only a social event does not supported from the law, but is a natural evolution of the growth over time until it reached the current state ... The state and the result of several factors pushed the group to this form, which is called the state. The proponents of this theory determines that it was decided an important principle, namely that the best systems for the rule of a people is a system that is more suited to the degree of development of this people and its level of civilization.

It should be noted that this theory is one of the most widely accepted theories among contemporary jurists to its agreement with the logic and the natures of things because states arise and evolve as a result of the interaction of various political and economic factors, social, cultural, historical and religious.

## **Subsection5: Democratic theories "social contract"**

The idea of social contract is the basic ideas of a democratic doctrine, which is due the power to the people, so the ruling authority is legitimate only if it is based on the will of the group.

The content of the social contract theory is the existence of an innate life precedes the group, and that the transition from the life of instinct to the life of the community has been built on a social contract between individuals with a view to establishing the governing authority.

The social contract theory combined on behalf of the famous French philosopher Jean-Jacques Rousseau, who presented it as a detailed presentation in his book super group called "social contract". However, Rousseau was not the first to say this theory where preceded with both Thomas Hobbes and John Locke.

### **\* Criticism of the theory of social contract:**

Social contract theory has exposed for many of criticisms including the following:

1 - It is a fictional idea that does not supported from reality, where the history did not provide a single example of the State originated by the contract.

2 - The theory - some proponents – based on wrong imposition which is the human where before the emergence of the group was in the case of isolation. But in fact, the human is social being by nature always lived in a group of groups.

3 - Also the theory criticized in legal terms on the two sides: the first that it is not enough to explain the binding force of the contract, to impose its presence, and the second they lead to serious results.

On the one hand is not correct to say the existence of an earlier contract to the group and established it, because

the binding force of the contract cannot be achieved unless the existence of the group and the authority which protects the contracts and apply the necessary sanctions to ensure respect.

As for the seriousness of the consequences of the theory, it is because the logic of the theory leads to say that the individuals have the right to refuse the contract and so not to join the group and not to succumb to its authority, also to say the existence of tacit acceptance of the terms of the contract makes the ruling free to determine the terms of the contract, which may lead to Tyranny.

## Vocabulary of

### (Chapter 1- Section 2)

A

Absolute tyranny

الطغيان المطلق

Abstract authority

سلطة مجردة

Aggression

عدوان

Ancient civilizations

الحضارات القديمة

Assyria

آشور

B

Barbarism

همجية

Blend

مزيج من

C

Capture

يلتقط

Collective national spirit

روح وطنية جماعية

Combined social contract

عقد اجتماعي مجتمعي

Consequences

|                                                                                     |       |                                                                                     |  |
|-------------------------------------------------------------------------------------|-------|-------------------------------------------------------------------------------------|--|
|                                                                                     | آثار  | توصيل                                                                               |  |
| Contemporary                                                                        |       | Democratic doctrine                                                                 |  |
|                                                                                     | معاصر | الديمقراطية                                                                         |  |
| Content                                                                             |       | Democratic theories                                                                 |  |
|                                                                                     | يحتوي | النظريات الديمقراطية                                                                |  |
| Criticism of                                                                        |       | Derive                                                                              |  |
|                                                                                     | نقد   | يستمد                                                                               |  |
| Criticized                                                                          |       | Divine command                                                                      |  |
|                                                                                     | انتقد | الأوامر الإلهية                                                                     |  |
|  |       | Divine providence                                                                   |  |
| Deification                                                                         |       | العناية الإلهية                                                                     |  |
|                                                                                     | تأليه |  |  |
| Delivery                                                                            |       | Emerged from                                                                        |  |

|                |               |                |                     |
|----------------|---------------|----------------|---------------------|
| Emergence      | منبتق من      | أسس            | G                   |
| Enemies        | ظهور          | خلق الله       | God's creation      |
| Entails        | أعداء         | السلطة الحاكمة | Governing authority |
| F              | يتضمن         | H              | Head of household   |
| Fictional idea |               | رب الأسرة      |                     |
| First nucleus  | فكرة خيالية   | المجتمع البشري | Human community     |
| Foundations    | النواة الأولى | فرضية سينفول   | Hypotheses Sinful   |
|                |               | I              |                     |



Illegal law

قانون غير شرعي

Impose its presence

فرض وجودها

Inadmissibility

عدم القبول

Inception

بداية

Incidents

حوادث

Individual country interaction

التفاعل بين البلدان

Innate life

الحياة الفطرية

Instinct

غريزة

J

Jurists

الفقهاء

L

Legitimate

شرعي

Livelihood

رزق

N

Natural nucleus

أداء

النواة الطبيعية

Persians



الفرس

Offspring

Precedes

النسل

تسبق

Orientation of wills

Prevailed

توجيه الإرادة

ساد

Origin of the state

Prior to

أصل نشأة الدولة

قبل ذلك

Overwhelmed category

Proponents

فئة طاغية

أنصار



Providence

Performance

|                 |                 |                           |               |
|-----------------|-----------------|---------------------------|---------------|
|                 | العناية الإلهية | Social contract           |               |
| Pushed          |                 |                           | عقد اجتماعي   |
|                 | دفع             | Solidarity                |               |
| R               |                 |                           | تضامن         |
| Religious       |                 | Succession of generations |               |
|                 | متدين           |                           | خلافة الأجيال |
| S               |                 | Succumb                   |               |
| Sanctions       |                 |                           | تخضع          |
|                 | عقوبات          | Suffice                   |               |
| Serious results |                 |                           | وفى بالغرض    |
|                 | نتائج خطيرة     | Suited to                 |               |
| Seriousness     |                 |                           | مناسب لـ      |
|                 | خطورة           | Superimposed system       |               |

|                        |                                  |
|------------------------|----------------------------------|
| نظام مفروض             | evolution                        |
| Supporters             | نظرية التطور العائلي             |
| أنصار                  | Theoretical owners               |
| T                      | أصحاب النظريات                   |
| Tacit acceptance       | Theories of the divine source    |
| قبول ضمني              | of power                         |
| The clan formed tribe  | نظريات الحق الإلهي كمصدر للسلطة  |
| عشيرة شكلت قبيلة       | Theory of historical or natural  |
| The father's authority | development                      |
| سلطة الأب              | نظرية التطور التاريخي أو الطبيعي |
| The state is I am      | To indicate                      |
| أنا الدولة             | للإشارة إلى                      |
| The theory of familial | Trace                            |

|                                    |        |            |            |
|------------------------------------|--------|------------|------------|
|                                    | يتعقب  | Veracity   |            |
| Transition                         |        |            | دقة أو صحة |
|                                    | انتقال | Violence   |            |
| Tribе                              |        |            | عنف        |
|                                    | قبيلة  | W          |            |
| U                                  |        | Witnessing |            |
| Unlawfully seized                  |        |            | تشهد       |
| تم الاستلاء عليه بطريقة غير مشروعة |        | Worshiped  |            |
| V                                  |        |            | يعبد       |



## **Section3**

### **Types of states**

Countries can be divided into multiple types, according to the standard which is the basis for the division takes, but we will limit ourselves in this regard on the traditional division of the types of states , a division which jurists practice, which is divides the states into two categories:

First: Types of countries in terms of sovereignty where divided into the full sovereignty states and other incomplete sovereignty.

Second: Types of countries in terms of shape or configuration where a simple divide states and others compound.

## **Subsection1: Types of the States in terms of sovereignty.**

Sovereignty is considered the standard relied upon in this division, states divided, according to the criterion of sovereignty into two types: a fully sovereign states and countries lacking sovereignty.

### **(1) Full sovereign states**

The full sovereign states are the states that enjoy full sovereignty at home and abroad without being subject to the will of any other country. Thus, the full sovereign state has absolute freedom in organizing its powers in the internal and external levels without any foreign interference.

At the domestic level, the state owns the organization of internal conditions in order to achieve supreme interests, it has the right to choose their governance system which suits it in terms of developing its



Constitution, and enacts the necessary laws for the proper functioning, regulates the powers of public institutions and their relations with each other, and between them and the members of its people, all this without being subject to any pressure or external influences.

On the external front, the full sovereign state exercises manifestations of sovereignty external with other countries and international organizations without being bound by any restrictions except concluded by the State in treaties or international agreements in this regard, where it has full freedom in practicing various aspects of external activities as establishment of diplomatic relations with other countries, holding of international treaties, and to enter into membership of international or regional organizations, or engaging in military alliances or economic blocs, to other aspects of international activity. All this in order to achieve the highest interests of the

nation - state without being subject to any external influence.

## **(2) Incomplete sovereign states**

Incomplete sovereign state is that State which does not enjoy complete independence in directing its internal or external affairs, or both together, but subjects to foreign state or international organization sharing it in the conduct of its powers.

Incomplete sovereign state is in each case where a legal relationship between it and other state limit its internal or external sovereignty.

Examples of States lacking sovereignty include dependent States, protected States and Custodian State. This is illustrated in a quick summary of the following:

### **A) A dependent State**

A dependent State is that State which is under the control of another State. The degree of control varies

according to the nature of the dependency relationship between the dependent state and the successor state.

This means that the subordinate state loses all its will so that it cannot exercise its external sovereignty or merely express its rights outside its borders, while maintaining all or some of its internal affairs. Examples of the countries of Egypt during the Ottoman rule until 1914.

### **B) Protected State**

Protected State is the country that is placed under the protection of another state sponsor of its own affairs and protects its rights either by choice or by forcibly. The State may, by its own free will and choice, put itself under the protection of another state, as protection may be mandatory through oppression and colonialism, when the strong state forcibly imposed its protection to another country weaker one.

Examples of protected countries Egypt in the period from 1914 to 1931 when it was separated from the Ottoman Empire and Britain declared protection of Egypt since 1914 and notes that the protected state does not take exercising external sovereignty, where the Protecting state holds to exercise foreign affairs of the state protected either alone or in combination with protected country. The internal affairs are of the jurisdiction of the protected state except for some important matters such as the army and financial management, where the protected stat exercise those affairs , in conjunction with the Protecting state.

### **C) Custodian State**

The guardianship system is a system established by the Charter of the United Nations, whose purpose is to consolidate international peace and security and to promote the welfare of the Trust Territories in various political, economic, social and cultural fields.

It should be noted that the system of international tutelage does not give sovereign States the right to sovereignty over those States, but only the right to administer those Territories to achieve the objectives of the aforementioned trusteeship system.

## **Subsection2: Types of countries in terms of shape or "configuration"**

States are divided in terms of shape or configuration into two types: simple countries, and other compound states.

### **(1) Simple or unified states**

A simple or unified state is a state characterized by its simple constitutional construction and the unity of the political regimes that govern it. Sovereignty in a simple state is unified, undivided, and has one owner, the state. Its political power is also concentrated in the hands of one government.

The unity of sovereignty and political power in a simple state entails the unity of the constitution, where the state has one constitution. The unit of legislation, the unit of implementation and the judicial unit ... where that State has one legislative authority, one executive authority and one judicial authority, each exercising its powers and jurisdiction over the people and territory of the State in all its parts.

## **(2) Composite states or "federal"**

As we have said, the simple state is that state which is characterized by its simple constitutional construction and the unity of its political systems. The federal or composite state, on the contrary, is not simply characterized by its constitutional construction, because it is a union of two or more States for a common purpose. It also divides sovereignty among the member states according to the type of union, with multiple constitutions and multiple powers within the federal state.

The jurisprudence distinguishes between four main images of federal states ranging from weakness to force depending on the degree of power distribution between the Union and its constituent states. These images are: personal union, treaty union, actual union, federal union. Which we will discuss successively in the following:

### **A) Personal Union**

Personal Union is the weakest forms of Union among states because it is limited in the person of the head of state. Personal Union arises as a result of meetings of two or more states under the rule of one person, whether that person is a king or emperor or the President of the Republic. Personal Union does not create a new state, where each State of the Union reserves of, the completely independent international personality at home and abroad.

Personal Union arises for different reasons. It may arise as a result of the application of the inheritance throne laws and may lead to the confluence of the throne

of two states in one person, such as the Union of England and Hanover, from the year 1714 to the year 1827. Also it may arise through marriage, such as the union between Poland and Lithuania (1485 - 1569) , the marriage of the Duke of Lithuania from the impact Queen of Poland. Finally it may arise by agreement, as happened in the union which was between Peru, Colombia and Venezuela when "Bolivar" was elected as president of the three republics from 1813 to 1815.

Anyway the end of personal union is by the demise of the person of the head of the Union for any reason as death, or the lack of agreement on the person again, or to oppose its continuation with the inheritance throne laws just as happened to the union between England and Hanover, which ended up due to take over Queen Victoria's throne of British, where the inheritance throne laws in Hanover, not allow women took the throne.



## **B) Autonomous or treaty Union**

Independence or treaty Union shall be established by a treaty or agreement concluded between two or more States, with a view to achieving some of the common objectives of the States members of the Union, through the establishment of a joint body called the "Assembly or Congress" achieves the objectives for which the Union was established, with the retention of each state in the Union with its international personality and its sovereignty at home and abroad.

Autonomous or treaty union does not lead to international personal courtyard of the countries of the Union, and does not lead to the emergence of a new state in the international community, but only the establishment of an important body that of achieving the objectives of the Union.

Examples of autonomous or treaty Union; Germanic Union between 1815: 1866, and the Swiss Confederation

of 1815: 1848. It is also the Charter of the League of Arab States in 1945, the site of examples of autonomous or treaty Union.

Autonomous or treaty Union ends with either the secession of the Member States, or by turning to a stronger association as Federal Union, for example.

### **C) Real or actual Union**

The real or actual union formed by two or more states joins in one union, so every state of the Union loses its international personality and its external sovereignty, and appears in the international community; new legal person exercises aspects of external sovereignty as diplomatic representation and holding international treaties.

In spite of the states were members of the real union or lose the actual international character, but they continue to retain the internal sovereignty shall each with

its own constitution and its own laws, the private spent, and its own government.

The real or actual union is considered more powerful than the personal union, which is limited to just the Union in the person of the head of state, and is more powerful than the autonomous or treaty Union because each country retains international personality and full sovereignty abroad and at home, while the real Union leads to the emergence of a new personality in the international community, which is independent in exercise of manifestations of external sovereignty of all Member States which lose their international character.

#### **D) Central or Federal Union**

Central or Federal Union is a joining of two or more to each other, so that results from the process of joining, international personal courtyard of those countries and the emergence of a new state in the international community is the Union State, which exercises all aspects of external

sovereignty on behalf of the State of the Union, follows that losing each State which merged its elements as a state and become mere political or regional units in the State of the Union.

Despite of the countries the members of the Union lose foreign sovereignty, they retain some aspects of internal sovereignty, where the distribution of internal sovereignty between the state and federal States, the members of the Union shall be for each state constitution, legislative, executive, and its own judicial and powers within the framework of the provisions of the Federal Constitution.

It shall be the State of the Union Constitution and federal powers of the federal legislative, executive and judicial powers exercised within all regions of the Union and in the face of nationals of other States. And then the Federal State is the personal become international recognized in the international environment, the members

of the Union shall become merely states or provinces or regions of the State of the Union. Central Union or Federal strongest unions, and is considered at all.

There is no doubt that the presence of the federal courts, especially the Supreme Court, which is to ensure respect of states laws and states courts to the Constitution of the Federal state.

Prominent examples for the Federal or Central Union are the Swiss Confederation, the United States of America, and the former Soviet Union.

**\* Methods of distribution of competences between the Union and the Member States:**

The Federal Constitution takes care of, the distribution of competences between the federal authorities and state authorities. It is affected in such with the way that the emergence of the Union, and the extent of the desire of its members and the Framers to strengthen

his powers or in the maintenance of the independence of States.

And we draw attention to the issue of the distribution of competences between the federal authority and powers of the states of union, relate to the distribution of the manifestations of internal sovereignty without external which held by the State of the Union. In this regard, the federal constitutions follow one of three methods as follows.

#### 1- The first method:

The Federal Constitution determines the terms of reference of each State of the Union and the United states, exclusively. This is despite the ease method, but it is shrouded in a serious drawback is that the constitutional legislator cannot predict in advance all matters and cases within their respective competencies of the States and the State of the Union. Thus , if any issue there is no text on it leads to conflict between the States and the State of the

Union to find out who regard to that issue , which leads to the conduct of many of amendments to the Constitution whenever any similar cases.

## 2- The second method:

The Federal Constitution determines the terms of reference States sets exclusively, leaving all else to the State of the Union, and then the State of the Union has general jurisdiction includes everything not mentioned text, and includes everything found in the future of things and issues do not interfere in the specific issues exclusively for the US.

This method aims to strengthen the federal state power at the expense of States because they make the jurisdiction of the State of the Union is the original and the general rule, while the jurisdiction of States is to be an exception and certain specific issues. Examples of countries that have taken this way Canada and the former Soviet Union.

### 3- The third method:

In which the terms of reference of the Federal Constitution, determine the State of the Union exclusively and leaving what else to states. This method unlike the previous way it makes States are the owner of general jurisdiction in practicing internal affairs, while the jurisdiction of the State of the Union in this regard is limited to matters defined by the Constitution, which only.

It is clear to the slightest hopes that this approach aims to achieve greater independence for the US measure on the conduct of its internal affairs in the face of the federal state.

Examples of countries that have taken this approach of the United States of America.

Those are the three methods used in the distribution of internal competences between the federal state and the



US. Each state chooses the method that suits their circumstances and aspirations.

## Vocabulary of (Chapter 1- Section 3)

### A

Abroad

خارج البلاد

Affiliates

شركات تابعة

Amendments

تعديلات

Approach

مقاربة

Aspirations

تطلعات

Assembly or Congress

الجمعية أو الكونجرس

At home

في المقر

Autonomous or treaty Union

الاتحاد التعاهدي أو الاستقلالي

### B

Behalf of the State

نيابة عن الدولة

Beyond

خلف أو وراء

Briefing clarify



يوضح باختصار

أهداف مشتركة

Competences

Central or Federal Union

كفاءات

الاتحاد المركزي أو الفيدرالي

Composite states

Charter of the League of

دول مركبة

Arab States

Compound states

ميثاق جامعة الدول العربية

الدول المركبة

Charter of the United

Concluded by

Nations system

اختتم بـ

ميثاق منظمة الأمم المتحدة

Conjunction

Colonialism

اقتران

استعمار

Contrary

Common objectives

| عكس                            | زوال                                     |
|--------------------------------|------------------------------------------|
| Countries covered by the Trust | Diplomatic relations<br>علاقات دبلوماسية |
| الدول المشمولة بالوصاية        | Discharge<br>إبراء الذمة                 |
| Countries lacking sovereignty  | Distribution<br>توزيع                    |
| الدول عديمة السيادة            | Domestic level<br>المستوى المحلي         |
| Courtyard                      | Economic blocs<br>تكتلات اقتصادية        |
| فناء                           | Emergence                                |
| Criterion                      |                                          |
| معيار                          |                                          |
| D                              |                                          |
| Demise                         |                                          |
|                                | E                                        |

|                              |                                |                   |                      |
|------------------------------|--------------------------------|-------------------|----------------------|
| Emperor                      | ظهر                            | جبهة خارجية       | External influences  |
| Enact                        | امبراطورية                     | تأثيرات خارجية    | F                    |
| Engage in military alliances | يسن قانون                      | الدستور الفيدرالي | Federal Constitution |
| Entrusted                    | الانخراط في التحالفات العسكرية | اتحاد فيدرالي     | Federal              |
| Expense                      | عهد                            | إدارة مالية       | Financial management |
| External front               | حساب                           | غصباً أو جبراً    | Forcibly             |
|                              |                                |                   | Foreign interference |

|                                                                                     |                 |                        |  |
|-------------------------------------------------------------------------------------|-----------------|------------------------|--|
|                                                                                     | التدخل الأجنبي  |                        |  |
| Framers                                                                             |                 | Implementation unit    |  |
|                                                                                     | واضعوا          | السلطة التنفيذية       |  |
| Framework                                                                           |                 | In this regard         |  |
|                                                                                     | إطار            | في هذا الصدد           |  |
| Full sovereignty                                                                    |                 | Incomplete sovereign   |  |
|                                                                                     | السيادة الكاملة | States                 |  |
|  |                 | الدول ناقصة السيادة    |  |
| Guardianship                                                                        |                 | Incomplete sovereignty |  |
|                                                                                     | وصاية           | السيادة الناقصة        |  |
|  |                 | Indivisible            |  |
| Holds the state                                                                     |                 | لا يتجزأ               |  |
|                                                                                     | يحمل الدولة على | Inhabitants            |  |
|  |                 |                        |  |

|                          |                |                 |             |
|--------------------------|----------------|-----------------|-------------|
|                          | السكان         | Manifestation   |             |
| Inheritance              |                |                 | مظهر        |
|                          | ميراث          | Merely          |             |
| Insulting                |                |                 | مجرد        |
|                          | مهين           | Merged elements |             |
| International agreements |                |                 | عناصر مدمجة |
|                          | اتفاقيات دولية | N               |             |
| L                        |                | Not interfere   |             |
| Losing                   |                |                 | لا تتدخل    |
|                          | فقدان          | O               |             |
| M                        |                | Oppression      |             |
| Mandatory                |                |                 | ظلم         |
|                          | إلزامي         | Ottoman Empire  |             |

|                         |                        |
|-------------------------|------------------------|
|                         | الامبراطورية العثمانية |
| Ottoman rule            |                        |
|                         | الحكم العثماني         |
| <b>P</b>                |                        |
| Personal Union          |                        |
|                         | اتحاد شخصي             |
| Practice                |                        |
|                         | يمارس                  |
| Predict                 |                        |
|                         | تنبؤ                   |
| Profile                 |                        |
|                         | ملف شخصي               |
| Prominent Federal Union |                        |

|                                   |                            |
|-----------------------------------|----------------------------|
|                                   | الاتحاد الفيدرالي البارز   |
| Protected State                   |                            |
|                                   | الدولة المحمية             |
| Provinces                         |                            |
|                                   | محافظات                    |
| Provisions                        |                            |
|                                   | أحكام أو نصوص              |
| <b>R</b>                          |                            |
| Ranging from weakness to strength |                            |
|                                   | تدرجياً من الضعف إلى القوة |
| Real or actual Union              |                            |
|                                   | الاتحاد الحقيقي أو الفعلي  |



Reference

مرجع

Simple divide states

الدول البسيطة

Regional organizations

منظمات إقليمية

Slightest hopes

أدنى أمل

Reserves

محميات

State sponsor

الدولة الراعية

Restrictions

قيود

Strengthen

تعزير

S

Subject

Serious drawback

عيب خطير

موضوع

T

Shrouded

يكتنفها

Territory

إقليم

Text of

نص

The President of the

Republic

رئيس الجمهورية

The Supreme Court

المحكمة العليا

There is no doubt

مما لا شك فيه

Throne laws

قوانين العرش

Traditional division

تقسيم تقليدي

Treaties

معاهدات

Trust Territories

الأقليم المشمولة بالوصاية

Trusteeship system

نظام الوصاية

Types of the states

أنواع الدول

U

Unified states

الدول الموحدة

Union 's actual

اتحاد حقيقي

Union treaty

اتحاد تعاهدي

Whenever

Unity of legislation

كلما كان

وحدة السلطة التشريعية

Unity of the judiciary

وحدة السلطة القضائية

W



## **Section 4**

### **The limits of state authority**

We talked in the first section of this chapter for the definition of the state and the statement of its corners, and made it clear that the authority is one of the pillars of the state; it is the important element that distinguishes between the state and other human groups. Here appears a question about the limits of state authority Is it absolute power limitless? Or restricted power exercised within the limits of the law and subject to him?

To answer this question we will divide this section into two demands we talk in the first of them about the subordination of the state to law or the so - called principle of "legal state." And in the second address basic theories which brought about legal thinking on the determination of the state authorities. As follows:

## **Subsection I; The principle of the legal state**

### **(1) The definition of the legal state**

There are numerous legal definitions of the state, although most of these definitions revolve around the meaning of a close. The German jurists have been keen to address the definition of the legal state, where Stahl defined the state as it determined by law and means of activity and the limits of that activity, while Jerkh defined the state, which is subject to the law, and not that put itself above the law.

However, the inclusive definition of the meaning of the legal state, from the view of the Egyptian jurist Prof. Dr. Tharwat Badawi is... "The legal subordination of the state to law in all aspects of its activities, both in terms of administration, legislation or the judiciary"

On this basis, the principle of legal state means subordination of all public authorities in the state -

legislative, executive and judicial – to the law in its broad sense , which includes various legal rules , according to the constitutional such as the rules listed by ordinary laws and regulations, as well as custom and general principles of law.

Hence the legal state is different from the authoritarian state, the authoritarian state is that State which does not subject to the rule of laws and regulations, but the ruling authority uses its powers , without restrictions or limits, and takes of his actions without subject to the rule of law.

## **(2) Elements of the legal state**

In order to legal state meaning is achieved in practice there are several elements or safeguards to ensure compliance with the law and a lack of tyranny the rights and freedoms of individuals by the public authorities, and these elements or guarantees can be summarized as follows:

- 1 - Adopting the principle of order of legal rules.
- 2 - The existence of the Constitution.
- 3 - Adopting the principle of separation of powers.
- 4 - Judicial oversight of the work of public authorities.
- 5 - The recognition of individual rights.

### **1- Adopting the principle of order of legal rules**

Which means that the legal rules governing the legal system consists of which in the country are connected to each other in a hierarchy, in the sense that they are not all in one rank in terms of power and legal value, but ranging between them, making some higher rank than others, where constitutional rules take pride of place at the top of the pyramid of the legal, followed by ordinary legislation issued by the legislature, and regulations issued by the administrative authorities. Finally, individual administrative decisions.



The principle included legal rules arrangement is a component of the legal state, where we cannot imagine the legal regime of the state without such a gradient that appears in the highness of some legal rules on some, and the dependence of others for some, which necessarily requires the subordination of the lower base to the top base form and substance.

## **2- The existence of the Constitution**

The existence of the Constitution is of the most important guarantees for the subordination of the state to the law, because the Constitution is the one who resides the state power and establishes its existence as a legal activity surrounding it by legal framework cannot deviate it. The constitution is the one who determines the public authorities in the state and shows the respective terms of reference and the limits of these terms of reference, as shows the individual rights and their freedoms, and must therefore all authorities exercise its powers within the

framework of the provisions of the Constitution or have lost its legitimacy and legality.

### **3- Adopting the principle of separation of powers**

The principle of separation of powers is one of the fundamental protection guarantees of individual rights and freedoms from the arbitrariness of the public authorities, and therefore it is an important guarantee for the existence of the legal state. The principle is intended to distribute the general functions of the state on the three authorities and the lack of concentration in the hands of one authority, which could lead to tyranny.

According to this principle, the public authorities divided in the state into three powers; legislative power would be responsible for the enactment of laws, and the executive would be responsible for law and public policy implementation of the state, judicial power is to adjudicate disputes that arise within the community. Once achieved, it has become the terms of reference for each

specific authority cannot go out without the attack on the terms of reference of other authorities.

#### **4- Judicial oversight of the work of public authorities**

Is not enough to determine the principle of the subordination of the state to the law, but must have safeguards to ensure respect for this principle and protect it in practice, ensuring the subordination of public authorities, especially the legislative and executive branches to the law.

Perhaps one of the most successful means of ensuring the effectiveness and ensure respect for the principle of legality is the organization of judicial oversight governing the work of public authorities. Due to the availability of such control to the judge of guarantees to ensure its neutrality and independence, and in view of the availability of litigation for opponents to defend their rights guarantees, as well as the enjoyment of judicial judgments by authoritative thing “res judicata”.

In addition to judicial control over the work of public authorities, there is political control and administrative control, but both are ineffective in protecting the rights and freedoms of individuals, since political censorship is subject to the whims of the majority party, and the administrative control is because it makes administration an adversary and a judgment at the same time .

## **5- The recognition of individual rights**

The principle of legal state aims to protect individuals from public authorities and from the aggression on their rights and freedoms, this principle presupposes the existence of the rights of individuals against the state, and that this principle is found only to ensure that individuals of their rights and freedoms.

The individual rights in traditional thought, which is based on the principle of state guardian meaning to broad makes those rights and freedoms impregnable barriers to the authority of the state, and fills in the face of certain

areas are prohibited from approaching them, and thus constituted restrictions on state authorities.

However, under the doctrines of the interventionist "socialism" the theory of individual rights and freedoms, took meaning to different requires the state to often intervene regulation in certain areas, especially the economic and social order to achieve certain individuals a physical level, and thus became the individual rights of the new meaning does not inevitably require restriction of powers the state, but on the contrary had to be meddling sometimes in represents expansion of its powers.

If it seemed that way, it does not mean that individual rights in the modern concept is incompatible with the principle of subordination of state law, but on the contrary supports this principle and strengthen that through imposing of certain obligations on the state. So far as the matter is that the meaning of this principle has changed. i.e. After the subordination of the state to the law was

negatively so tightly refrain by assault on individual rights pursuant to the thought of traditional free, it has become a positive yield in the socialist tendencies of the modern state because of the imposed by the law of positive obligations in order to achieve a certain level of individual material.

In both cases, the state is subject to the law, albeit subject in thought socialist narrower than the subject in the free thought.

### **Subsection2: Political theories in determining the state authorities**

We explained in the previous definition of the requirement of legal state and its elements, although the jurists combine the need to undergo the state of the law, but they differ in the determination of the basis of this submission.

Doctrinal theories that form the basis of the subordination of the state of the law can be summarized in four theories:

- 1 - The theory of individual rights.
- 2 - The theory of natural law.
- 3 – Theory of self-Selection of sovereignty
- 4 - Theory of Social Solidarity.

We address these theories in four consecutive branches as follows:

### **(1) Theory of Individual rights**

The theory on the basis that the individual natural rights born with a former rights group, because the individual was enjoyed in the case of first instinct, and kept after the transition to the life of the organization group because individuals did not intend this move to waive their rights, but targeted to find the authority to

ensure for them to protect these rights and to prevent the conflict between them. The state has only existed for this purpose, it is obliged to respect the natural rights of individuals, and constrained by the need to be taken into account.

Universal Declaration of Human Rights of the United Nations text on the rights of individuals included, in the first article that "all human beings are born free and equal in dignity and rights ..." Article II of it stipulates that "Everyone is entitled to all the rights and freedoms set forth in this ad ".

## **(2) The theory of natural law**

The natural law theory bases on the existence of a natural law, inherent in the nature of social links found by the mind, which is the law as whole laws that dominate the natural phenomena. This law precedes the state in existence, considered as a restriction on the ruling power, and the role of human mind is only to draw this natural



law and works to formulate its laws in accordance with the provisions of the natural law.

### **(3) Self-determination theory of sovereignty**

Some German scholars said this theory and in the forefront of Ohernj and Gelinak, and wanted to reconcile the sovereignty and respect for the law of the State. And endorsed by the French jiuists Carré de Mlberg and valine.

This theory is summed up in that state, which sets the law, however, abide by it. The state is subject to the law willingly because it sees in their interest to protect.

The state as law-abiding recognizes justice and security, and ensures obedience to individuals. It is true that the state has the right to amend the law or repeal but abide by it as long as standing, and when it repealed a law or legal system, to replace by another one will in turn tied to her, but it Cannot abolishes a legal system to replace

lawlessness. The state of this restriction shall continue to retain its sovereignty, because it sets their own rules, which restrict their jurisdiction. The restriction by the law is not incompatible with the sovereignty of the state because it does not come to it from the outside, and do not impose to it from the highest authority.

Thus, the proponents of this theory have been forged between the idea of state sovereignty, and the idea of the subordination of the state law. The sovereignty of the state is incompatible with the idea of restricting it by outside authority, but if this restriction by the state itself, it does not interfere with its sovereignty because the country accepts willingly putting this restriction and submission to it.

#### **(4) Social Solidarity Theory**

In this theory, a jurist Leon Doge called that the state restricted in its actions and its substantive law by the requirements of social solidarity base. Man feels his need

to the life in the community to satisfy their needs and desires, and arise between him and the members of the state the sense of social solidarity.

In summary, the Doge theory based on the idea that the state is a social event based on the force, but what was the purpose of the political power is to achieve a law that imposed by social solidarity, the state is bound by this law, the power to be legitimate only if agreed with its provisions. Solidarity is the one who justifies the legitimacy of the power of rulers, and determines this power at the same time, so that the actions of the ruler are null if they conflicted with the requirements of solidarity, and it was the right of individuals to rise up against him and resist him.

## Vocabulary of (Chapter 1- Section 4)

### A

Adopting

اعتماد

Abide by

ملتزم بـ

Abolished

إلغاء

Administrative authorities

سلطات إدارية

Adversary

خصم

Aggression

عدوان

Agreed with

اتفق مع

Arbitrariness

تعسف

As law-abiding replace

يحل محل القانون

Attack on

هجوم على

Authoritarian

استبدادي

### B

Barriers

Constrained by

حواجز

مقيدة بـ

C

Custom

Compliance

عادة أو عُرْف

التزام

D

Component of the legal state

Defend

مكون الدولة القانونية

دفاع

Conflict

Demands

نزاع

حفز

Consecutive

Desires

على التوالي

رغبات

Consensus

Doctrinal theories

إجماع

نظريات فقهية

Dominate

تسيطر

E

Effectiveness

فعالية

Enactment

تشريع

Endorsed

أيد

Entitled to

مخول لـ

Existence

وجود

Expansion of its powers

توسيع صلاحياتها

F

Flags

الأعلام

Forefront

طليلة

Forged

مزور

G

German scholars

علماء ألمان

Guarantees

|                                                                                     |            |                     |            |
|-------------------------------------------------------------------------------------|------------|---------------------|------------|
|                                                                                     | ضمانات     | Impregnable         |            |
| Guardian                                                                            |            |                     | منيع       |
|                                                                                     | وصي        | Inclusive           |            |
|    |            |                     | شامل       |
| Hierarchy                                                                           |            | Incompatible        |            |
|                                                                                     | تسلسل هرمي |                     | غير متوافق |
| Higher rank                                                                         |            | Individual material |            |
|                                                                                     | أعلى رتبة  | Inevitably          |            |
|  |            |                     | لا محالة   |
| Implementation                                                                      |            | Inherent            |            |
|                                                                                     | تنفيذ      |                     | متأصل      |
| Impose                                                                              |            | Inhibitor           |            |
|                                                                                     | فرض        |                     |            |

|                    |                |             |                  |
|--------------------|----------------|-------------|------------------|
| Instinct           | مانع           | L           | رقابة قضائية     |
| Intended           | غريزة          | Legal state | الدولة القانونية |
| Interfere          | تدخل           | Legality    | شرعية            |
| Interventionist    | تدخلي          | Legitimacy  | شرعية            |
| Its broad sense    | بمعناها الواسع | M           | معنى             |
| Judicial oversight |                | Meddling    | تدخل             |
| J                  |                |             |                  |



Mess

التزامات

تعبت

On this basis

Mission

على هذا الأساس

مهمة

Once achieved

N

بمجرد تحقيقها

Natural phenomena

Opponents

ظاهرة طبيعية

معارضين

Necessarily

Oversight

بالضرورة

رقابة

O

P

Obedience

Physical level

طاعة

مستوى مادي

Obligations

Pillars

|                                                                                     |                |                  |  |
|-------------------------------------------------------------------------------------|----------------|------------------|--|
|                                                                                     | أعمدة أو أركان | تترواح من        |  |
| Positive yield                                                                      |                | Recognition      |  |
|                                                                                     | عائد إيجابي    | اعتراف           |  |
| Presupposes                                                                         |                | Reconcile        |  |
|                                                                                     | يفترض          | تصالح            |  |
| Pride                                                                               |                | Regime           |  |
|                                                                                     | فخر            | النظام الحاكم    |  |
| Prohibited                                                                          |                | Regulations      |  |
|                                                                                     | ممنوع          | قوانين           |  |
| Pursuant                                                                            |                | Resides          |  |
|                                                                                     | طبقاً          | يقيم             |  |
|  |                | Respective terms |  |
| Ranging                                                                             |                |                  |  |

Restricted

محدد

Restricting them

التضييق عليهم

Revolve

يدور حول

S

Safeguards

ضمانات

Social solidarity

تكافل اجتماعي

Socialism

اشتراكية

Solidarity

تضامن

Stipulates

ينص

Submission

تسليم

Subordination

تبعية

Substantive law

القانون الوضعي

Summarized

ملخص

Summed up

T

Tendencies

لخص

ميل

The limits of state authority

حدود سلطة الدولة

The principle of the legal state

مبدأ الدولة القانونية

To waive

تنازل

Transition

انتقال

Turn tied to

مرتبط بدوره بـ

V

Void

باطل

W

Willingly

إرادياً أو عن طيب خاطر

# **Chapter Two**

## **The Government**



## **Chapter Two**

### **The Government**

#### **Introduction:**

The political thought represents one aspect of human thought, This thought, which did not show a single breakthrough, but evolved with evolution of human societies and was the result of this development and in response to it ... where the successive generations inherited the political ideas that have undergone the evolution of time and the environment and promote human beings in the field of thought and civilization.

If evolution has the right of political ideas in general, it is the right forms of governments and types in particular, where the systems collapsed under the influence of intellectual currents that have emerged at the hands of philosophers and leaders of the Enlightenment

and led to the progress of political awareness among the people knew their rights, and felt its entity, and stuck to the need to enjoy freedoms so eliminated the manifestations of tyranny through the revolutions that toppled the dictators and received sovereignty to the convicts Consider them original owners ... arguing that the rulers are merely representatives of convicts exercising their powers and their terms of reference for the account of the governed and their favor.

***\*The meaning of the word government:***

The word government has multiple narrow and wider means vary depending on what is meant by each of them.. It goes out the term to the total governing bodies which govern the affairs of the state, (i.e. the three public authorities, legislative, executive and judicial.)

The government word may goes out to narrower meaning than the previous meaning so that means the executive authority alone, where this authority is the body



that handles the affairs of the state, and thus the government in this sense include the head of state, ministers and their assistants. This is due to the fact that the executive branch is connected to the public continuously, and appears as an engine on the public policy of the state as opposed to the interim parliament session, which issued laws characterized by generality and abstraction without facing individual cases.

Meaning of government may also narrower from the previous meaning so that goes out to the side of the executive branch which is the ministry, so the term government here is synonymous with the term ministry. This is common sense, especially in the parliamentary system states where it is said that the ministry is accountable to parliament, as well as the prime minister in a parliamentary system is the Prime Ministry.

However, we mean government system by the word of the government here, i.e. how to use public authority

and exercised by the public authorities in the state. This is the meaning, which we will revolve around in our study in this chapter and the next one, where we take, the types of governments and means of attribution of governance in this chapter, and we are talking in the third chapter on the organization of the public authorities and the statement of the relationship between them by explaining the different forms of parliamentary governments.

Accordingly , we will divide the study in the current chapter to three sections devote the first of which to different types of governments, and we take forms of democratic governance in the second, then we are talking in the third and final about the means for assigning judgment.

**Section1: Types or "forms" of governments in terms of the source of sovereignty.**

**Section2: kinds of democratic governments.**

### **Section3: the means of attribution of governance.**

#### **Section1**

#### **Types or "forms" of governments in terms of the source of sovereignty**

Governments take many forms as divided by scholars of several forms, according to the standard, which is taken as the basis for the division.

In terms of submission to the law, governments are divided into legal and other authoritarian governments. In terms of the Supreme President of the state governments are divided into the governments of the Republic and other Royal governments, and in terms of the source of sovereignty are divided into individual governments, minority governments, popular governments or democracy.

We will limit ourselves in this place on the latter division which considered the most important traditional division ... so we will divide this section into three subsections.

### **Subsection I: Individual government**

Individual government is the government in which power is concentrated in the hands of a single individual which is regarded as the sovereign in the state, regardless of the designation of this individual, king, emperor or a dictator. Individual government takes in practice two forms; absolute monarchy on the one hand, and the referee dictatorial on the other hand.

#### **(1) Absolute monarchy**

Absolute monarchy is the oldest system visible from the view of historical point. Where it was the dominant system in the majority of countries since ancient times until the French Revolution in 1789, although England is

the oldest countries in the disposal of the absolute monarchy system through eliminating the rule of Stuart by the revolution of 1688.

The absolute monarchy is characterized by, a concentration of power in the hands of one individual where one is not shared, and takes that power through inheritance from father to grandfather claiming that he derived it from God directly or indirectly as the king is the shadow of God in the earth or representative of divine providence, and therefore the authority does not based on the popular will. As long as it so what the people have to do is comply with that authority of divine origin, otherwise they were outlaws on religion. Under that absolute power kings are not being held accountable for their actions in front of the parish, but asked directly before God ... and here was an absolute power.

However, the absolute monarchy as seen by the jurisprudential, may turn into a constitutional monarchy

and restricted, by the participation of the people in power, so the people is to become the owner of the original sovereignty not the king ... the constitutional monarchy no longer such as individual governments; because the king does not govern alone, but shared him in governance bodies elected by the people, where the Constitution assume the distribution of public authorities in the state on different bodies, including the throne.

## **(2) Authoritarian rule**

Authoritarian rule Is similar to absolute royal rule in some things and different from the others.... They are similar in terms of one person alone with power in both. In the absolute monarchy and the dictatorial ruling both unique to one person power within the state, but they differ in terms of the source of that power and its causes.

While it is a single source of power in the absolute monarchy systems in the inheritance of the throne system, and find the basis in theories and religious justifications

as Divine authority, we find that it is under the dictatorship governments very different, where the dictator ascend the rule thanks depending on his personal power and its efficiency, which represents the source of the ruling authority of the dictator and the basis of it at the same time.

The ruler in the dictatorial regime in power not through inheritance, but it is being handled by strong thanks to his personality and his own competence, and aided in reaching this purpose a party or group believes him, They condemn his principles and influenced by him in the hope of benefiting from behind.

The individual judgment was prevalent in ancient societies, whether it takes the form of absolute monarchy or dictatorship shape. This is due to two reasons; the first that the political power was as a privilege for those who exercised, acquired thanks to what is characterized by its

personal qualities donated to him by nature or derived from God, so the power is his property.

The second reason, the public affairs was limited and simple, and therefore has not shown the need for urgent in those ancient societies to find different authorities distributed, including the exercise of these affairs, and on this basis, there was no need to know whether it is more appropriate to focus the authorities or distribution.

### **Subsection2: Minority government**

The minority government is the government in which power is concentrated in the hands of few individuals, so not unique to one person as in the case of the absolute monarchy system or dictatorial, also it is not the property of the people, as in the case of the democratic system.

The minority government takes in practice multiple forms according to the type and nature of the few ruling



class, and thus multiple titles vary between the government of the oligarchy or aristocracy or theocracy.

Oligarchy government is called when the reins of power, is in the hands of a layer of rich works only for her personal, known as the invalid minority government.

While the government is called aristocracy when the power, is in the hands of the best people in terms of science or social status, which are called by the jurisprudence the elite government, i.e. based on the leadership of a few to the country's fate represents the elite members of society in thought, awareness and production, making them more worthy of running the affairs of governance.

While the government called a theocracy when a minority of the clergy takes office, as happened in Pharaonic Egypt from the growing influence of the priests in the area of governance which is the same as what

happened to the Catholic Church in most European countries in the middle Ages.

The minority government loop transition from autocracy to democratic rule according to the theory of Aristotelian session, which said by the philosopher Aristotle, which explain how the succession of different systems and roles experienced by the state, and therefore the minority government is a system that is followed individual judgment and precedes democratic governance.

States starts by royal favor system, which is called in the doctrine of modern parental property system, and then the king does not soon to parish and exploits the referee for his own interest. Then The revolution breaks out and topple the monarchy and replaced by the rule of the minority of the leader of the revolution and aristocrats ... This system also begins with a good, but it quickly spoils with time, where tyrannize minority rule and exploited against the interests of the popular majority, then a new

revolution establishes a popular system that is based on the will of the majority.

### **Subsection3:           popular           "democratic"**

### **Government**

Popular or democratic government is the government that the people where is the sovereign and hand the reins of power, so that the rulers are subject to the supervision of public opinion and public freedoms are guaranteed to individuals in order to achieve equality among them. Thus, the People's Government diverges from the two types of previous governments; individual and minority, because the power here is not concentrated in the hands of a single individual or a small group of individuals but exercised by the people in the group as its owner authentic.

Democracy is a Greek origin word consists of two syllables Demos meaning people, Krates the sense of

power, so the meaning will be people's power or linguistic rule of the people.

It noted that the bulk of jurisprudence attempts to develop a specific definition of democracy are based on the fundamental idea that democracy is the rule of the people for the people.

This definition of democracy carries two key elements. First, governance is rooted in the people and, secondly, that the judgment exercised for the benefit of the people.

However, if the people in democratic governments are the source of sovereignty and its owner, the way the exercise of this sovereignty take different forms. The people may exercise their sovereignty directly; govern directly without a mediator so called direct democracy, or the people have been limited role to the choice of deputies - especially members of Parliament - acting on behalf of him in the practice of governance, which is now

prevailing in most countries of the contemporary world situation, that is known as parliamentary democracy. Finally, there may be a regime known as semi - direct democracy, where the people choose the parliament to exercise the power, with reference to the people in some of the important things which are handled directly by him, without the parliament having the right to decide on such a referendum.

## Vocabulary of (Chapter 2- Section 1)

### A

Absolute monarchy

الملكية المطلقة

Abstraction

تجريد

Accordingly

وفقاً لذلك

Accountable to parliament

خاضع للمساءلة أمام البرلمان

Acquired

مكتسب

Aided

بمساعدة

Arguing

يجادل

Aristocratic

ارستوقراطي

Aristotelian session

الدورة الأرسطية

Assigning judgment

تعيين الحكم

Assistants

مساعدین

Assume

|                           |                      |              |
|---------------------------|----------------------|--------------|
| Attempts                  | افتراض               | الاستفادة    |
|                           | C                    |              |
|                           | Civilization         |              |
| Authoritarian governments | محاولات              | حضارة        |
|                           | الحكومات الاستبدادية |              |
| Authoritarian rule        |                      | أنظمة منهاره |
|                           | الحكم الاستبدادي     |              |
| Awareness                 |                      | فطرة سليمة   |
|                           | وعي                  |              |
| B                         | Compromise           | مرونة        |
| Benefit of the people     |                      |              |
|                           | فائدة الشعب          | معاصر        |
| Benefiting                |                      |              |
|                           | Continuously         |              |

|                |             |                 |               |
|----------------|-------------|-----------------|---------------|
| Convicts       | بشكل متواصل | Dictators       | دكتاتوري      |
| Country's fate | المحكومين   | Disposal        | الطُّغاة      |
| <b>D</b>       | مصير البلاد | Diverge from    | تصرف          |
| Deputies       |             | Dominant system | تباعد من      |
| Designation    | النواب      |                 | النظام السائد |
| Dictator       | تعيين       | <b>E</b>        |               |
|                |             | Engine          | محرك          |
| Dictatorial    | دكتاتور     | Entity          |               |



|                            |        |                   |                 |
|----------------------------|--------|-------------------|-----------------|
|                            | كيان   | French Revolution |                 |
| Equality                   |        |                   | الثورة الفرنسية |
|                            | مساواة | G                 |                 |
| Evolution                  |        | Generality        |                 |
|                            | تطور   |                   | عمومية          |
| Exploited                  |        | Governance        |                 |
|                            | مُستغل |                   | الحكم           |
| Exploits                   |        | Greek origin      |                 |
|                            | يستغل  |                   | أصل يوناني      |
| F                          |        | H                 |                 |
| Forms of democratic        |        | Handled           |                 |
| governance                 |        |                   | التعامل         |
| أشكال الحكومات الديمقراطية |        | His property      |                 |

I

In response to

Individual governments

Intellectual currents

Intended by

Interim

J

ممتلكاته

للاستجابة لـ

الحكومات الفردية

تيارات فكرية

المقصود بها

مؤقت

Justifications

L

Leaders of the Enlightenment

Linguistic rule

M

Merely representatives

Minority government

Mutation

مبررات

قادة التنوير

القاعدة اللغوية

مجرد ممثلين

حكومة الأقلية

O

On the grounds

Otherwise

Own competence

P

Parliamentary governments

Personality

طفرة

على أساس

غير ذلك

الكفاءة الخاصة

الحكومات البرلمانية

الشخصية

Philosophers

Popular "democratic"

Government

حكومة شعبية أو ديموقراطية

Precedes

Prevailing in

Priests

Productive

الفلاسفة

تسبق

السائد في

الكهنة

إنتاجي

Promote

ممثل العناية الإلهية

ينمي

R

Respond in

الرد في

Referendum

Revolve around

استفتاء

يدور حول

Regime

Royal rule

النظام الحاكم

حكم ملكي

Reins

S

زمام

Supreme President

Religious

الرئيس الأعلى

متدين

Synonymous

Representative of divine

مرادف

providence

T

The parish

الرعية

Traditional division

التقسيم التقليدي

The popular will

الإدارة الشعبية

Tyrannize

استبد

The referee

حَكَمَ



Undergone

Theocratic government

حكومة ثيوقراطية

يخضع لـ

Toppled

أطاح



## **Section2**

### **Forms of democratic government**

We mentioned above to say that democracy means the rule of the people, and that the democratic government is the popular majority government, which makes people the source of power and sovereignty in the country. However, democratic governance does not take in a practical reality a single form, but multiple forms varied in terms of the Supreme Head of State, or in terms of how people participate in power and practice it.

It is in term of the Supreme Head of State the democratic rule takes one of two forms; the constitutional monarchy when the king holds power through inheritance ... and the republican ruling when the president takes the rule of the state by election by the people.

In terms of the participation of the people in power, the democratic governance takes one of three forms; a direct democracy, representative democracy, and semi direct democracy and so we will divide the study in this section to two subsections as follows:

### **Subsection 1; forms of democratic governance**

#### **In terms of the Supreme Head of State**

Democratic governance Takes in terms of the Supreme Head of State two forms; a constitutional monarchy on the one hand and the republican governance on the other.

#### **(1) Constitutional Monarchy**

Constitutional monarchy is one of the forms of democratic governance, in which the supreme head of state shall be a king is governed by inheritance... It is from this angle is equal with the absolute monarchy, but it differs from the angle of the exercise of power. While the



king is practicing absolute powers under the absolute monarchy, as the owner of the actual authority, Which we find in the constitutional monarchy, is exercised only in terms of honor or formality in accordance with the principle of "the king reigns and does not judge".

The Constitutional monarchy based on the people which is the owner of the power and sovereignty exercised by the elected parliament. Thus, the king does not have sovereignty or even part of it, he does not exercise authority, but the real power is concentrated in the hands of the elected body of the owner of the inherent powers of the people, while the King is just a symbol of the state only, and practices only a formality or ceremonial powers.

The development of circumstances and events led to the transformation of absolute monarchical systems into constitutional monarchies in which kings recognized the

power of peoples. The United Kingdom UK is the best example of this development.

Accordingly, the property systems in the present day find its corroboration in the desire of some people to be controlled by this system like the English people.

Thus constitutions in the royal systems regulate the hereditary succession of "governing" in its core and restrict it to a certain family, and it is often careful to prohibit the amendment of the texts governing the heir to the throne..

## **(2) Republican rule**

The republican rule known as; the system, which is the choice of the head of state by the people directly or indirectly, for a specific period and this is, called the republic President.

Thus, the republican system is distinct from the royal system in that it makes the choice of the president of the

republic in the hands of the people - directly or indirectly - for a specified period where the ruler is not imposed on them as in the royal system in which the king takes over the rule of the state through inheritance for the duration of his life, and not by free choice by voters.

Because of the consistency of the republican system with democratic thought it is spreading in many countries of the world on the monarchy account and become is the dominant feature of the system of governance in the modern era, While the royal system disappeared and no longer exists except in a few countries compared to the republican system, which represents the will of the citizens in support of the President of the Republic.

If the republican rule is distinguished from royal rule from this angle, the flourishing of the democratic principle and the spread of it have led to the disappearance of the other differences between the two systems, which were considered to be the remnants of the

absolute monarchy, which is the determination of certain privileges to kings. Those concessions that have diminished and shrunk at the present time for their inconsistency with democratic thought, which refuses to have kings only some symbolic powers or Sharafih. It is no longer surprising that the presidents of the republics have far more powers and powers than the kings. This is evident from the fact that the President of the Republic of the United States of America has much more power than the Queen of England.

### **\* Methods of selection of the President of the Republic**

The methods of choosing the president vary according to the constitution of each country. Some make the choice of the President of the Republic through the people, others make his choice in the hands of Parliament, while the third brings together the two previous ways make the selection of the President of the Republic through a joint body involving parliament and

representatives of the people ... Which is illustrated as follows:

### **1- Election of the President by the people**

Some constitutions are keen to make the choice of the President of the Republic through the people to respect the will of the people and in response to the democratic principle which makes the sovereign people exercise it by choosing its rulers, especially the presidents of the Republic.

However, the constitutional systems vary among themselves in the way the people choose the president Republic.

Some of them make the choice of the President of the Republic by the people through direct elections, i.e., one degree, as is the case in the current Egyptian Constitution, as well as the French constitution.

And others make the choice of the President of the Republic through the people indirectly, i.e. by indirect or two degrees, where the people choose in the first instance a number of delegates who choose the President of the Republic in the second phase, as in the United States of America.

## **2- Election of the President of the Republic by Parliament**

This is the method of assigning the Constitution the task of choosing the President of the Republic to Parliament, so that the parliament elects the President of the Republic without the people ... Examples of constitutions adopted by the method of the Constitution of the French Third Republic in 1875, as well as the Constitution of the Fourth Republic in 1946, which provided that Parliament is a society in the form of a conference - that is, with the meeting of the two Houses

of Parliament, the deputies and the elders together - to choose the President of the Republic.

However, what is most important in this way is that it makes the President of the Republic subject to the Parliament, thereby weakening his position, and loses the due respect and respect of the Head of State to Parliament, and even weaken the executive branch in general in the face of the legislative authority, which may lead to many political crises and political instability, which happened in France during the Fourth Republic.

### **3- Choice of President of the Republic by the people and the Parliament**

In view of the fact that the choice of the President of the Republic through the people alone or the Parliament alone may be detrimental to the tyranny of the Presidents in the first case and their weakness visa- versa the Parliament in the second case, some constitutional systems try to reconcile the previous considerations, thus

avoiding their disadvantages, and in order to achieve the desired balance, between the legislative and executive branches in the interest of the people ... and therefore resort to the participation of Parliament with the people in the selection of the President of the Republic.

Egypt is one of the countries that took this method in the constitutions that followed the revolution of July 23, 1952, the constitutions of 1956, 1964, 1971 It is the Constitution which was Make the choice of the President of the Republic through Parliament and the people together in accordance with the text of Article 76 before amendment.

## **Subsection2; forms of democratic governance in terms of how people participate in power**

We mentioned above to say at the beginning of this chapter that democracy means the rule of the people for the people, i.e. The people are the owner of the power and the source of sovereignty within the state ... and if it



seemed in this way, the practice of the people of this sovereignty is not a single picture, but multiple forms; The people have the power exercised by him directly, this is called the image of direct democracy, and may resort to the election of deputies - members of Parliament - to exercise power on their behalf, the so-called parliamentary democracy. Finally , people may gather in the exercise of power between the two previous forms of power select deputies engage power on his behalf , while retaining the right to participate directly in the House of Representatives some of the affairs of governance, which is known as semi - direct democracy.

Therefore, the participation of the people in power takes the form of direct democracy, parliamentary democracy, or semi-direct democracy, which is divided into three branches, respectively:

## **(1) Direct Democracy**

Talking about direct democracy requires that we address, inter alia, the definition of its content, its applications, and its advantages and disadvantages.

- **Definition of direct democracy**

Direct democracy means that the people should govern themselves directly without an intermediary. This means that the people exercise the power to rule by themselves in all their legislative, executive and judicial aspects. This is achieved through the meeting of the people in the form of a popular assembly, in which they decide the laws themselves and implement them, as well as disputes resolution which arising within the state.

The people in this form of democracy combine the qualities of the ruler and the ruled at the same time. Democracy in this sense is the ideal form of government because it empowers the people to exercise all the powers

themselves, without resorting to rulers because they are self-governing.

However, this ideal picture of governance is impossible to apply on the ground - especially at the present time - for a variety of reasons, including the increase in the population and the opposition of their interests, and therefore the difficulty of consensus on a particular matter. Hence, direct democracy took another meaning, the sovereignty of legislation, leaving the tasks of implementation and the judiciary of persons chosen for this purpose.

- **Applications of direct democracy**

Therefore, direct democracy is no longer applicable except in a few Swiss provinces. The people in these provinces meet in the form of a popular assembly once a year in a public square or in wide rangeland to legislate ratify treaties and impose taxes, directly to some important administrative affairs. As for the executive

function, the People's Assembly elects an executive council to carry out the executive power, as well as the selection of judges to handle the various disputes.

Indeed, the application of direct democracy in both ancient Greek cities and in some Swiss provinces was limited to the exercise of the legislative function, without the executive and judicial functions, which is contrary to the essence of direct democracy according to the legal concept.

- **Evaluation of direct democracy**

The jurisprudence of constitutional law believes that direct democracy has many advantages, and it is surrounded by several defects. This is summarized as follows:

***A) Advantages of direct democracy***

Direct democracy achieves several advantages that can be summed up in the following points:

1 - Direct democracy is the closest system to ideal democracy, where the people govern themselves without an intermediary or deputy, exercising all aspects of legislative, executive and judicial sovereignty.

2 - The people feel the extent of its importance, and that it has an active role in the life of the political group, raising his morale and interest in public affairs.

3 - The sense of belonging to citizens is encouraged, which leads them to take positive attitudes towards participation in solving the general problems and finding realistic solutions to them ... thus eliminating the negative characterization of the peoples in general.

4 - Liberate the people from the misleading propaganda of political parties - usually found in parliamentary democracy, and semi-direct - and raised by these parties of doctrinal differences and slogans hollow and tendentious propaganda ... It is free of the people in direct democracy because of his rule himself.

## ***B) Disadvantages of direct democracy***

If direct democracy has all these advantages theoretically and logically, it is not free from defects and drawbacks in real terms:

1 - The impossibility of implementing direct democracy in the modern era, given the size of the country and the increasing population, which makes it impossible to meet the people in one place to rule himself.

2 - The entanglement and conflict of interest between the people of one people prevents their agreement on a unified solution on one issue or problem.

3 - There are a lot of technical and complex general issues that need specialists to discuss and make a right decision, which is not available to the vast majority of the people.

4 - The existence of some public matters that need to be a bit of confidentiality in the discussion and decision on them ... Thus, the presentation to the people and the

participation of all citizens in the discussion reveals its secret, and presents the interests of the State of the highest risk does not ensure punishment.

## **(2) Parliamentary democracy**

If direct democracy represents the ideal image of government as conceived by philosophers, political thinkers, and men of law, the application of this ideal picture is confronted by many physical, technical and legal obstacles, which necessitated resorting to another form of democratic governance: parliamentary democracy given the impossibility of applying direct democracy.

In order to surround the system of parliamentary democracy, we must address the definition of its meaning, the justification for its existence, and its distinctive elements as follows:

- **The concept of parliamentary democracy and its rationale**

Parliamentary democracy can be defined as a system in which the role of the people is limited to the selection of deputies who exercise parliamentary power for a specified period ... The people do not exercise power themselves, but their role is limited to the election of deputies who take power in their name for a certain period, where the electoral system is differentiated between the sovereign, the people and those who exercise them, who are deputies.

Democracy has emerged as a result of historical developments in England - the birthplace of the world's parliamentary system. The system has moved to other countries of the world, on the one hand, and in response to the necessities of practical reality that have prevented the application of direct democracy on the other. , and the impossibility of applying direct democracy due to the size



of the modern countries and the increasing population and conflict of interests, as well as the lack of access to the people to a degree of cultural and political awareness to qualify them to govern themselves directly, and the lack of sufficient time in the electorate to discuss public matters and address the affairs Governance ... which led to resorting to parliamentary democracy in response to those necessities and practical justifications.

- **Elements of the electoral system:**

The electoral system is based on a set of elements that distinguish it from other systems of government which are:

- 1 - The existence of an elected parliament of the people.
- 2 - The Parliament exercises real powers.
- 3 - Determining the term of Parliament.

4 - Parliament's independence from the electorate during its term of office.

5 - Member of Parliament represents the whole nation.

### **1 - The existence of an elected parliament of the people**

It is necessary for the parliamentary system to be elected by the people, where the elected parliament represents the core of the electoral system and its axis of concentration without which it has no strength. This parliament needs to be elected from the people and not because the election is the one that takes the democratic system as the democratic means of choosing rulers.

Some believe that the election of parliament does not mean that the parliament is elected in a group, but may combine election and appointment. In the sense that some members are elected and others are appointed, provided that the elected members constitute the vast majority of

members of parliament, whether the parliament consists of one or two chambers.

If the Parliament is composed of two Houses, one of which is elected and one appointed, as is the case in the United Kingdom of Great Britain, whose Parliament consists of two Houses: the House of Commons and the House of lords, It is the House elected “the House of Commons” which is legally constituted as representative of the nation and vice-president so that it is described as a House of Representatives. The House of Lords, being appointed by the King in full, is not described as a House of Representatives except as a metaphor.

## **2 - The Parliament exercises real powers**

It is not enough for the parliamentary system to have a parliament elected by the people. Moreover, the parliament must exercise real powers, particularly in the areas of legislation and supervision. Therefore, the parliamentary status of the parliament is limited if its role

is limited to the exercise of purely advisory powers even if elected from the people, because it does not have real powers in the management of state affairs.

The functions of parliament in the parliamentary system are three legislative, financial and supervisory functions.

In addition to the legislative function, the parliament exercises a supervisory function over the performance of the government. The ministry is asked before it about its implementation of the general policy of the state through the various means of control that the parliament has, such as questioning, interrogation and parliamentary investigation. This oversight function is exercised by parliaments only in parliamentary governments without a presidential one.

Finally, the Parliament exercises a financial function in which general taxation is imposed, which is imposed

only by law, as well as the endorsement and approval of the general budget of the State.

### **3- Determining the term of Parliament**

The parliamentary system is based on a third pillar: the duration of the work of the parliament and its representation of the people. The parliamentary system finds its support and justification in expressing the wishes of the people and their aspirations that develop over time ... This entails the return of the people from time to time On the one hand, and subject to its control in a manner that prevents the tyranny of Parliament on the other, which necessitates the delay of the term of the Parliament, because prolonging this period would weaken the idea of the representation of parliament to the people, and express the wishes and aspirations that may lead to the collapse of the basis of the parliamentary system.

The Parliament's term of office is aimed at reconciling two considerations. The first is to ensure the

independence of Parliament and to allow it to exercise its powers and powers without the influence of the electorate and its pressures. The second is reflected in ensuring effective popular control over the Parliament's performance by renewing the confidence of those who deserve it, at the end of the term of Parliament and the election of a new parliament.

In order to reconcile these disparate considerations, the term of the Parliament should be a reasonable period of time, without being too lengthy to weaken public control over the performance of the Parliament and lead to its despotism or shortening it so that Parliament cannot perform its functions.

So the duration should not short or long, but a reasonable average duration ranging from four to six years.

#### **4- Parliament's independence from the electorate during its term of office**

The electoral system assumes the independence of a member of parliament from the electorate during his term of office, so that they are not entitled to comment on it, or require him to take a certain position on the problems that the parliament is facing, and to commit it to any such thing is devoid of any legal value, which is reflected in the status of parliament in a group to the electorate throughout his tenure.

Once the process of electing members of Parliament has ended, the latter has the legal power to exercise his constitutional powers independently of the electorate, who is not entitled to interfere in the work of the parliament, because their role ends only by choosing members of Parliament who then have the expression of popular sovereignty as he sees fit for the public good.

### **5- Member of Parliament represents the whole nation**

When the system emerged in its early beginnings, the prevailing principle was that the Member of Parliament represented only his constituency. This happened both in England and in France, where deputies received from their constituents a written mandate or power of attorney acting on their basis throughout their term of office, with their commitment to provide a statement of account to their electors at the conclusion of the parliamentary session. The relationship between the MP and his constituents was in the form of the agency recognized in private law. As a result, voters were entitled to give binding instructions to the deputy, as well as their right to dismiss him at any time.

However, this principle disappeared from England since the eighteenth century, and from France after the outbreak of the French Revolution in 1789 and replaced by the principle of representation of the MP of the nation



and not only its constituency as a result of the adoption of the French Revolution of the principle of nation sovereignty, which requires representation of the MP of the nation as a whole.

### **Subsection3: Semi-direct democracy**

Since direct democracy is the ideal form of government because it makes the people empowered to exercise it by themselves, the difficulties of its application led to the emergence of parliamentary democracy, which distinguishes between the sovereign, the people and those who exercise them as rulers, where the role of the people is limited to electing the rulers to exercise power on his behalf. .. Since this parliamentary image in turn far away from the ideal image of democratic governance, the political systems to mix the two systems so that each take some of its characteristics, remains the essence of the system of the representative of the existence of elected bodies exercise power in the name of the people on the

one hand , with reference to the people in the bite of the important things practiced by himself, especially in the legislative sphere, on the other hand ... which is what used to be called legal doctrine semi-direct democracy.

In order to understand the provisions of semi-direct democracy, it is necessary to address, inter alia, its definition, its manifestations, as well as its assessment of its advantages and disadvantages. which is divided into three sections, respectively.

### **(1) Semi-direct democracy definition**

The semi-direct democratic is defined by jurisprudence as the system in which the people elect the governors - the members of parliament and the president - to assume power on his behalf, while retaining some of the powers Practiced by theirselves directly, especially in the legislative sphere.

The semi-direct system is based on the existence of an elected parliament with legislative authority, with the people having the right to veto the laws enacted by the parliament, as well as the right to propose them, as well as the referendum on some of them.

## **(2) Manifestations of semi-direct democracy**

The semi-direct democracy takes a number of different manifestations, and distinguishes it from other systems of government. However, the jurists did not agree on a common word on these aspects combined, but they met on three aspects: popular referendum, popular objection and popular proposal, while they differed about three others, some saw it as a manifestation of the applications of democracy and its manifestations, while others see that it is not one of their applications or manifestations, but is one of the applications of parliamentary democracy ... These aspects are the right of voters to dismiss the MP, The right to propose a

dissolution of Parliament in addition To the right to dismiss the President of the Republic ... and we deal with these aspects in succession briefly.

### **a) The popular referendum**

The popular referendum is one of the most important aspects of semi-direct democracy. It is intended to poll the opinion of the electorate on a particular subject which may be a draft law, an international treaty or a constitutional amendment.

The referendum means knowing the opinion of the people on a subject in order to identify their consent or objection to this subject.

The popular referendum is one of the most common manifestations of democracy, which is very widespread. It was adopted by many constitutions such as the French constitution issued in 1958 and the current Egyptian constitution issued in 2012 and amended in 2014.

## **b) The popular objection**

Popular objection means the right of a number of the electorate to object to a law issued by the Parliament within a certain period of its publication. The law shall cease to be effective and shall be submitted to the public for its appeal. The objection shall not result in the immediate fall of the law. , If the result of the referendum approval of the law continues to apply and considers the objection was not, but if the result of the referendum in favor of the objection to the law, this law retroactively falls, and is considered as if not where all the effects that have resulted before the objection.

Noting that the majority of registered voters must be opposed when the law is presented to the popular referendum, it is not enough to oppose a majority vote in the referendum, because in some eyes, those who lag behind voting are in agreement with the law.

### **c) The popular proposal**

The popular proposal means that a certain number of the electorate shall have the right to propose a bill and submit it to parliament for discussion and decision. It is noted that the popular proposal achieves greater participation of the people in the legislative process compared to popular referendum and popular objection, which is the law of both of the motion of the parliament, with the role of the people confined to objection or referendum, while in the case of popular proposal, the bill is the work of the voters themselves, Not parliament.

The popular proposal takes two forms: the first is a classified or detailed proposal drafted in the form of a specific bill divided into articles, the second is represented in unpublished proposal, which is limited to a statement of the subject or idea to be legislated, leaving the task of drafting the bill fully to Parliament.

The form of the popular proposal on the ground is to allow a certain number of the electorate - determined by the constitution - to propose a bill and submit it to parliament, which must be discussed and deliberated, so that it has the freedom to approve or reject it. The constitution required that, but if the constitution does not require that, it is not presented to the people.

In the event that the parliament rejects the draft law, the matter must be presented to the people for their consideration. Some constitutions allow parliaments in that case to draft a bill against the project submitted by the voters, and the people can choose one of these two projects at the referendum.

#### **d) The right of voters to dismiss MP**

Some constitutions allow a certain number of voters, such as a quarter or five, to propose the dismissal of their deputy, who represents them in parliament before the expiration of his term of office, when they are elected to

leave the task chosen for them, different, as is the case in the constitutions of some states in the United States of America.

The dismissal of the deputy in this case would lead to re-nomination in the constituency he represented, with the right to re-candidacy. If reelected, those who proposed his dismissal will be charged with re-election as a penalty for them. Financial amount as a guarantee to ensure the seriousness of the request for isolation and justification. This right is commonly used in the United States of America and not only for parliamentarians, but also for public officials and elected judges.

### **e) The right to propose dissolution of Parliament**

This is the right to dissolve the parliament in a group, not just the dismissal of one of the deputies, as in the previous case ... where some constitutions permit a certain number of voters determined by the Constitution the right to request dissolution of the House of Representatives. If



the number requested to request a solution, it is up to the people to take a look at it. If the result of the referendum is to approve the request for a solution, the council is considered dissolved and new elections must be held.

In view of the seriousness of the popular solution to the dissolution of the entire parliament, some constitutions that permit it require a majority described in the referendum on the request for a solution, so that not only a majority of those who cast their ballots in the referendum may require a majority of all voters or a two-thirds majority of those who voted in the referendum. Switzerland is one of the most prominent countries that take the system of popular solution, as well as taken by some of the German states before unification after the First World War.

#### **f) The right to dismiss the President of the Republic**

Some constitutions allow the people the right to dismiss the president when he loses the necessary

confidence and consideration or goes out on the task for which he has been chosen. This allows the people to directly control him at the top of the executive authority represented by the president when he loses popular confidence in the performance of his office.

In view of the gravity of this matter, the constitutions are surrounded by many guarantees to ensure its proper use ... Examples of constitutions that took the appearance of this constitution are the German Constitution of 1919. It provided that the President of the Republic could be dismissed before the expiration of the seven years he was elected, Appointed by the electorate and approved by the Reichstag by a two-thirds majority, subject to the approval of the people in a popular referendum. This is the same as the Austrian Constitution of 1920, which was amended in 1929 in paragraph 6 of Article 60, following special procedures, including consultation the people in this regard through the popular referendum.

### **(3) Assessment of semi-direct democracy**

The majority of scholars believe that the application of semi-direct democracy achieves many advantages and is characterized by some disadvantages:

#### **The advantages of semi-direct democracy**

- 1 - The semi-direct system is more in line with the democratic principle and closer to the ideal of democracy than the system of law, since it allows the people in many cases to participate in governance.
- 2 - This system is used as a means to combat the tyranny of parliamentary assemblies ... The Parliament in the pure parliamentary system is independent of voters during its term of office, which may lead to tyranny.
- 3 - The semi-direct system frees the will of the voters from the control of the political parties so that they can express their opinions in the laws according to their

visions and convictions, and not according to the political parties empty slogans.

4 - This system achieves harmony between the people and parliament, and works to avoid disagreement between the parliamentary majority and the electorate

### **Dis-advantages of semi-direct democracy**

1 - The participation of the people in the affairs of governance is a matter of vision because of what is known about the masses of the rush and vulnerability, which makes it under the control of reactionaries and capitalists and walk in their passengers.

2 - The popular referendums are also a formality because they are not preceded by sufficient discussions that allow careful study of the issues under the referendum, which makes the people's judgment a superficial one.

3 - Lack of the majority of the people of the required degree of cultural and political awareness that enable him to participate in good governance.

4 - Finally, this system requires the application of high expenses, which burdens the state budget and it is wasting time voters and disrupt their work ... which may lead to the people fill the system and tired of its application.

## Vocabulary of

### (Chapter 2- Section

### 2)

A

Ambitions

طموحات

Anti-law project

مشروع مكافحة القانون

Approval

موافقة

Approve

يوافق

Argue

يجادل

Aspects

نواحي

Aspirations

تطلعات

Assessed

تقييم

Assessment of semi-direct  
democracy

تقييم الديمقراطية شبه المباشرة

Assigning

تعيين

Assumed

|             |         |                       |               |
|-------------|---------|-----------------------|---------------|
| Attachment  | يفترض   | C                     | رجال الأعمال  |
| Attorney    | مرفق    | Capitalists           | رأسماليون     |
| B           | محامي   | Ceremonial            | شرفي          |
| Bail to     |         | Choosing rulers       |               |
| Biased      | بكفالة  | Circumstances         | اختيار الحكام |
| Briefing    | انحياز  |                       | ظروف          |
| Businessmen | توجهيات | Collapse of the basis | انهيار الأساس |
|             |         | Commitment            |               |

| التزام               | تحول                                                                                |
|----------------------|-------------------------------------------------------------------------------------|
| Conference           | Converts                                                                            |
| مؤتمر                | متحولين                                                                             |
| Confidential         | Convictions                                                                         |
| سري                  | قناعات                                                                              |
| Conflict of interest | Corroboration                                                                       |
| تضارب المصالح        | تأييد                                                                               |
| Consensus            |  |
| إجماع                | Decide                                                                              |
| Consistency          | قرر                                                                                 |
| تناسق                | Delegates                                                                           |
| Conversion           | مندوبين                                                                             |
|                      | Democratic thought                                                                  |



| الفكر الديموقراطي    | الإشراف المباشر      |
|----------------------|----------------------|
| Deserve              | Discretion           |
| استحق                | تقدير                |
| Devoid               | Dismiss MP           |
| يخلو                 | رفض النائب           |
| Differentiates       | Dismissal            |
| تمييز                | إقالة                |
| Diminished           | Dispute              |
| تضاءل                | خلاف أو منازعة       |
| Direct democracy     | Disrupt              |
| الديمقراطية المباشرة | تعطيل                |
| Direct supervision   | Distinctive elements |

| عناصر مميزة                                                                         | إزالة                   |
|-------------------------------------------------------------------------------------|-------------------------|
| Divergent                                                                           | Embodied                |
| متشعب                                                                               | تتجسد                   |
| Dominant                                                                            | Embraced                |
| مهيمن                                                                               | احتضن                   |
| Draft                                                                               | Encountered             |
| مشروع                                                                               | واجهت                   |
|  | Enrolled                |
| Election                                                                            | مُقيد                   |
| انتخاب                                                                              | Envisioned philosophers |
| Electorate                                                                          | تصور الفلاسفة           |
| جمهور الناخبين                                                                      | Essence                 |
| Elimination                                                                         |                         |

|                     |             |                        |  |
|---------------------|-------------|------------------------|--|
|                     | جواهر       | يقاتل                  |  |
| Exhausts            |             | First-class people     |  |
|                     | عوادم       | شعب الطبقة العليا      |  |
| Exorbitant expenses |             | Flaws                  |  |
|                     | نفقات باهظة | عيوب                   |  |
| Extravagance        |             | Forefront              |  |
|                     | تبذير       | طليعة                  |  |
| <b>F</b>            |             | formal powers          |  |
| Faded               |             | السلطات الرسمية        |  |
|                     | تلاشى       | Forms of democratic    |  |
| Fallout             |             | government             |  |
|                     | يسقط        | أشكال الحكم الديمقراطي |  |
| Fight               |             | French Constitution    |  |

الدستور الفرنسي

G

General taxation

الضرائب العامة

Get tired

مُتَعَب

Gravity

جاذبية

Greek cities

المدن اليونانية

H

Hollow slogans

شعارات جوفاء

Honorary

فخري

I

Illusion

وهم

Illustrated

يتضح

Immediate objection fall of  
the law

سقوط فوري للقانون المُعْتَرَض عليه

Imperatives

الضرورات

Impossibility

|                            |                  |                      |  |
|----------------------------|------------------|----------------------|--|
|                            | استحالة          | متفقون               |  |
| In any case                |                  | Intercept            |  |
|                            | على كل حال       | اعتراض               |  |
| Independence of parliament |                  | Intermediary         |  |
|                            | استقلال البرلمان | وسيط                 |  |
| Indulging                  |                  | International treaty |  |
|                            | انغماس           | معاهدة دولية         |  |
| Inheritance                |                  | J                    |  |
|                            | ميراث            | Judgment             |  |
| Instructions               |                  | حكم                  |  |
|                            | تعليمات          | Justification        |  |
| Intellectuals              |                  | مبرر                 |  |
|                            |                  | K                    |  |

Keen

L

يحرص على

Legal doctrine

عقيدة قانونية

Legal obstacles

عقبات قانونية

Legislative field

المجال التشريعي

Legislative sphere

المجال التشريعي

Lobbyists

جماعات الضغط

M

Modern era

العصر الحديث

N

Necessities

ضروريات

Nomination

ترشيح

Numerous safeguards

عديد من الضمانات

O

Opportunity

فرصة

Optimal rule

القاعدة المثلى

Outweigh

يفوق

Oversight

رقابة

P

Parliament mission

بعثة برلمانية

Parliamentary investigation

تحقيق برلماني

Parliamentary session

جلسة برلمانية

Parliament's proposal

اقتراح البرلمان

Participate

مشاركة

People 's wishes

رغبات الشعب

Popular proposal

اقتراح شعبي

Popular solution

الحل الشعبي

Popular objection

اعتراض شعبي

Pledge

|                       |                        |
|-----------------------|------------------------|
| تعهد                  | استفتاء على نزع السلطة |
| Political instability | Practical reality      |
| عدم الاستقرار السياسي | الواقع العملي          |
| Political parties     | Privileges             |
| الأحزاب السياسية      | امتيازات               |
| Politicians           | Procuratorial system   |
| سياسيون               | نظام النيابة العامة    |
| Popular assembly      | Prohibit               |
| الجمعية الشعبية       | حظر                    |
| Popular association   | Prolongation           |
| جمعية شعبية           | إطالة                  |
| Power-grab referendum | Promulgated in         |



| رجعيون              | صدر في          |
|---------------------|-----------------|
| Realistic solutions | Propaganda      |
| حلول واقعية         | دعاية           |
| Realistically       | Public interest |
| بواقعية             | اهتمام عام      |
| Reconcile           | Punishment      |
| تصالح               | عقاب            |
| Referendum          | <div>R</div>    |
| استفتاء             | Ratification    |
| Reichstag           | تصديق           |
| ريخستاغ             | Rationale       |
| Reject              | المنطق          |
|                     | Reactionaries   |

|                         |                |               |               |
|-------------------------|----------------|---------------|---------------|
| Remnants                | رفض            | طلب حل المجلس | Resign        |
| Render                  | بقايا          | استقال        | Resort        |
| Rent                    | يجعل           | منتجع         | Respectively  |
| Republican rule         | تأجير          | على التوالي   | Retaining     |
| Request of isolation    | الحكم الجمهوري | الاحتفاظ      | Retarded      |
| Request of the solution | طلب الاعتزال   | متخلف عن      | Retroactively |

|                                                                                       |                          |                          |
|---------------------------------------------------------------------------------------|--------------------------|--------------------------|
|                                                                                       | الديمقراطية شبه المباشرة | بأثر رجعي                |
| Reward for                                                                            | Sentenced                |                          |
|                                                                                       | حكم                      | مكافأة لـ                |
| Right to veto laws                                                                    | Seriousness              |                          |
|                                                                                       | خطورة                    | حق الاعتراض على القوانين |
| Roads                                                                                 | Shrank                   |                          |
|                                                                                       | انكمش                    | طرق                      |
|  S | Sockets                  |                          |
| Scholars                                                                              | مآخذ                     |                          |
|                                                                                       | State budget             | علماء                    |
| Sectarian slogans                                                                     | الموازنة العامة للدولة   |                          |
|                                                                                       | Stipulated               | شعارات طائفية            |
| Semi-direct democracy                                                                 |                          |                          |

المنصوص عليه

Superficially

ظاهرياً

Surprising

مفجأة

Suspended law

قانون معلق

Swiss provinces

المقاطعات السويسرية

Symbolic

رمزي

T

Tabbed

A

كلف

Tangle

تشابك

The core of

جوهر

Trading on

تداول على

U

Unification

توحيد

V

Vast grasslands

المراعي الشاسعة

Vast majority

الغالبية العُظمى

Vastness

اتساع

Vulnerability

عالي التأثير



Wasted

ضائع

Weakens

يضعف

Weimar German

فايمر الألمانية

Widening area

توسيع المنطقة

Widespread manifestations

مظاهر واسعة الانتشار

Withholding

حجب



## **Section3**

### **The means of attribution of governance**

#### **Introduction**

The means of assigning power within the state are varied between non-democratic means and democratic ones based on the idea of selection ... The governing bodies within the state reach power by various means. In the past, the rulers viewed the rulers as one of the forces of nature that they could not push or convert. In the past, the rulers imposed the convictions on the grounds that they were chosen by God directly or indirectly. Thus, the sons of men have no discussion of the account or search for the basis of their authority, where power was transferred from one ruler to another through heredity, power and dominance.

With the spread of liberal ideas advocating the rights of peoples and their sovereignty and authority, especially during the eighteenth century AD under the influence of the American and French revolutions, these non-democratic means have disappeared, and other means have been replaced by free choice by the governed. The democratic means of choosing these rulers because of the close link between the democratic principle and the election as a means of assigning power, in the sense that there is no democracy unless the election is the means of choosing the rulers ... As far as expansion Report of the right to vote and to circulate its application in the formation of public authorities in the state - especially the legislative and executive branches, "Head of State" - as far as the system is democratic.

Since elections are the means of free choice of rulers by the governed according to the democratic means to choose these rulers, we will limit here to examine the



general provisions of the election in terms of its nature and nature, and the composition of the electorate, its procedures and guarantees, as well as dealing with its various systems, which entails the division of this subject to four demands as follows:

### **Subsection I: what election and its legal nature?**

In this subsection, we address the definition of the election in a first branch and then its legal nature in a second section as follows.

#### **(1) What is the election?**

Election means choice as a tool or means of peaceful power-sharing, and the choice of rulers by the will of the people. Some have recognized that it is the procedure by which the people choose individuals to represent or exercise sovereignty on their behalf, and to perform one

of the functions of the state, which is generally the legislative function.

For our part, we define the election as "the means of the governed to choose the rulers, especially members of the legislative authority and the President of the Republic, in accordance with the conditions and conditions determined by the Constitution and the law.

## **(2) The legal nature of the election**

The jurisprudential debate on determining the legal nature of the election was heated as follows:

### **a) Election is a personal right**

Members of this trend view that the election is a personal right that is proved to every citizen by virtue of citizenship. This opinion is based on the principle of popular sovereignty, which consists of the sum of the sovereign rights of individuals ... As long as everyone has a part of sovereignty, in selecting referees by election. It

follows that the legislator cannot deprive the individual of this right, or restricts it in a manner that distinguishes between the individual and the use of this inherent right except as an exception, such as cases of incapacity or loss of authority to exercise it.

### **b) Election is a function or "duty"**

Supporters of this trend argue that an election is a duty or function regulated by the Constitution and the law, not a right that every citizen has.

Therefore, the state has to determine the conditions of practicing this function, determine the conditions to be met in the electorate so that it is limited to certain categories, and do not achieve equality between citizens in the political field, which means the possibility of the introduction of the principle of restricted ballot has received this trend and acceptance by the leaders of the revolution French, who adopt the principle of the sovereignty of the nation, in which sovereignty is the

property of the nation itself as a public person independent of the group of individuals and components, and it is indivisible. This is adopted by the Constitution of the third year in 1791, the third part of it states that " The birth of a single unit, and it does not accept retail nor waived, nor ownership of limitations, which is the king of the mother.

### **c) The election is legal authority**

This view of the French sign Joseph Barthélémy, who sees that the election is a legal authority derived by the voter of the electoral law itself, which determines the electorate, the electoral system. And that the legal authority did not decide for the benefit of the voter personally, but for the public good of good Selection of referees. Professor Barthélémy concludes that the composition of the electorate is not a purely legal problem, but rather a problem of political and social

exclusion depending on the interaction of the various forces within the state.

### **Subsection2: The composition of the electorate**

The electorate means the members of the people in the political sense. They are citizens of the state who meet the conditions of practicing political rights and are part of the people of the state, which includes all its citizens who enjoy their nationality. Thus, the meaning of the electorate does not match the meaning of the people, nor is it equal, but part of it. Thus, the electorate does not include all the people, but only those who are able to manage public affairs from among the people of the state.

The electorate may narrow or widen depending on the extent of the expansion of the right to vote or narrowing it. Thus, the election may be general and may be restricted. The political system is only democratic when the system of universal suffrage is adopted, in

accordance with the principle of equality among citizens - in the political sphere - as one of the principles that prevails in legal thought.

A discussion of the composition of the electorate requires the introduction of restricted and general "election" systems in two branches, respectively:

### **(1) Restricted election**

Restricted election is that electoral system whose exercise restricts the right to vote, that certain conditions must be met in the voter as a condition of financial ability, scientific efficiency or both. Hence, anyone who does not meet the requirement of financial ability or scientific competence is deprived of this right.

#### **a) Restrict election with financial quorum**

Restricting the election to a financial quorum is one of the most common forms of restricted election in the past. This restriction requires that the right to vote or a

grant be recognized only to those who have been eligible for a certain financial quorum, such as if the voter is the owner, occupier or occupant of a property with a certain income, or to be motivated by a certain tax not less than a certain amount of money, by a restricted ballot until the amendment of the electoral law in 1918.

It has been argued in the justification of restricting the election of a financial quorum as a justification for the fact that the landless are not only occupied with the livelihood, and therefore they do not care about politics and management of public affairs of the state, and wealth is the link between the owner and the country where he lives and make him concerned about them. On the one hand, the wealthy are the ones who bear public expenditure as taxpayers and thus reflect the public policy implications of different governments, as well as the affinity of wealth with competencies because it allows

them a degree of education that enables them to govern well.

However, these justifications do not provide a convincing argument to deny the poor to participate in the election and the selection of rulers within the state because they clash with the principles of freedom and equality among all the sons of one nation.

### **b) Restricting the election on the condition of competence**

The restricted election shall take the form of the necessity of having certain competencies in the voter, so that the voter shall not be recognized except for those who have special competence, such as having a certain degree of competence and ability to conduct the electoral process.

In fact, efficiency notwithstanding its opposition to the democratic principle that equates citizens with the



political sphere, its application in some countries, such as France under the constitution of 1830, was not intended to limit the electorate, but to mitigate the effects of restricting the election provided that the financial quorum ... Where this constitution exempted from the requirement of financial quorum of a degree degree, such as scientists and members of the Academy and retired officers.

However, restricting the election on the condition of efficiency is in turn incompatible with the principle of equality, which requires the equality of all citizens in the enjoyment of political rights, the most important of which is the right to vote, whether illiterate or educated.

## **(2) Universal suffrage**

Some went to the definition of universal suffrage as not setting conditions for voting such as a financial quorum or scientific efficiency, or electoral system in which no one is excluded from voting because of his wealth, origin or education. Switzerland was one of the

first countries to introduce this system in 1830, while France applied it under the Constitution of 1848, and then it was applied later in most countries of the world where It was applied in England in 1918 and was applied by Egypt under the 1923 constitution.

However, the report of the principle of universal suffrage does not mean a grant to all the people without any condition or restriction. This is contrary to the logic of things, there are categories that require the public interest not to grant this right to the poor and the poor. Therefore, the jurisprudence has defined several general conditions that must be met by the voter to ensure the proper exercise of this important and dangerous political right to ensure the proper selection of public authorities objectively, which are general conditions that do not conflict with the principle of universal suffrage because they are organizational requirements related to the organization of the exercise of this right.

## **\* General requirements for election**

### **1- Age**

The age requirement is one of the general conditions for the exercise of political rights in general, including the right to vote, where the individual must reach a certain age to be able to appreciate things.

Constitutional systems vary among themselves in determining political age by whether they adopt backward or progressive thinking. Conservative systems that tend to maintain rise of political age, while progressive systems tend to broaden the base of participation and give it to young people.

Thus, these systems are equal between the age of political majority and the age of civil majority, which is twenty-one Gregorian years, such as the Lebanese constitution. Some of them rise this age to twenty-five Gregorian years, such as the French constitution of 1830.

Some of them fall to 18 years of age To expand the base of the electorate so as to ensure broadening the base of popular participation, which was adopted by the Egyptian constitutions issued after the revolution of July 23, 1952, which reached the age of political maturity to 18 years AD to broaden the base of popular participation.

## **2- Nationality**

Nationality is a political and legal association between the individual and the state, which requires him to be loyal and has to protect him and give him the benefits of that association.

As the election - as one of the most important political rights - is the means of choosing rulers within the state, and the appearance of the expression of national sovereignty, the logic entails the restriction on citizens without foreigners in order to preserve the supreme interests of the state and not endanger its security if allowed to participate in the election, that foreigners are

only guests subject to the laws of the host country without the right to choose the rulers or the authorities of the public, which requires the restriction of this right to the citizens of the state associated with, those concerned, who are keen on their interests.

Therefore, various constitutions are keen to deny foreigners the exercise of political rights and make them exclusive to their citizens.

### **3) Gender**

Women's participation in public affairs and their recognition of political rights are now common place in both Marxist and Western democracies. However, this was not the case until the early 20th century, when the vast majority of the world did not recognize the right of women to vote. The right to vote on men without women was justified by saying that men were superior to men, According to the natural role of each of them, where women are concerned with the affairs of the house and

children, while the man is living the life and hardships, as well as the lack of performance of women to the blood tax - the performance of military service - unlike men

However, this prohibition is contrary to the principle of universal suffrage, which requires equality between women and men in the political sphere, therefore, the vast majority of countries in the world have tended towards the equality of women and men in political rights by recognizing women's right to vote and to stand for election.

#### **4) Mental capacity**

The voter must be healthy and sound in his or her mental powers so that he can exercise his political rights, including the right to vote. Therefore, the electoral laws prohibit the exercise of this right, which suffers from mental disabilities such as madness and dementia. Therefore, it would be logical not to involve him in the

conduct of political affairs, which is not contrary to the principle of universal suffrage.

If the deprivation of mental disabilities to exercise their political rights throughout the duration of their illness is not a problem, the difficulty lies in determining the basis of the report of the lack of mental person, and thus deprived of the right to vote ... where the majority of jurisprudence to make this matter From the jurisdiction of the judiciary on the basis of the report of a specialized authority, and not leave it to the administration so as not to misuse this condition by excluding the political opponents of the ruling regime by depriving them from practicing their political rights on the pretext of lack of mental powers to the truth.

It is noted that the denial of political rights due to mental incapacity is inherently a temporary denial of the disappearance of a person's illness, so that if he is recovering he will regain his political rights again.

## **5- Literary validity**

The electoral laws stipulate that the voter must have the moral requirement, in the sense that he has not previously been convicted of an offense that violates his honor, which prevents him from returning to contribute to the public affairs of the state. That the enjoyment by individuals of their civil and political rights is a natural state enjoyed by every citizen unless a provision has been issued for his temporary or permanent deprivation.

Despite of the requirement of moral validity does not conflict with the principle of universal suffrage as a logical condition, the democratic trend works to limit moral incompetence to include only persons who have been sentenced to criminal offenses for crimes against honor and considered as crimes in general, as well as theft, Embezzlement and forgery, as well as crimes of supply such as rape and indecent assault ... and others.



If this is the logical reason for the existence of the requirement of moral authority to exercise the right to vote, it is noted that some political regimes - especially the authoritarian and revolutionary alike - exploit this condition in order to achieve a political objectives, where it deliberately deprives some people from practicing Their political rights for political reasons in the fact that they are literary in nature, especially their political opponents.

It may even come to be considered in many cases as crimes of opinion and the press as criminal crimes, which are in fact political crimes that do not require the deprivation of political rights, which is contrary to freedom Opinion on the one hand, and contrary to the principle of universal suffrage, on the other hand.

#### **6) Denial of military personnel**

Many electoral laws prohibit military personnel from exercising political rights as long as they are in service, targeting various purposes such as removing the army

from politics, and influencing its disobedience, maintaining order and obedience within the military establishment, and preventing officers from influencing soldiers and distorting election results if they are granted that's right.

In the view of the jurisprudence that the denial of military exercise of political rights is incompatible with democracy and the principle of universal suffrage, which led to contemporary democratic systems to the full settlement between the military and others in the enjoyment of political rights ... Among the countries that allow the military the right to vote England and France, America.

However, we tend to support another doctrinal view that tends to support the Egyptian legislator in depriving the military and members of the police force of practicing political rights so as to distance them from engaging in the political polemics that accompany the electoral

process, which are resorted to by competing parties, which may lead to fragmentation of the unity of these institutions, undermine its cohesion and discharge it from the performance of its original duties in safeguarding the security and internal and external order of the State, which may expose it to grave and unspeakable dangers.

### **Subsection3: The integrity of the electoral process guarantees**

#### **(1) Secret voting**

The voting secret in our time is a recognized principle in all modern countries because it represents a fundamental guarantee of the voter's freedom to cast his vote.

The public vote represents an attack on this freedom because it opens the door wide to the intervention of the administration and terrorizing voters to get them to elect candidates Power, as well as exposing voters to retaliation

by their political opponents. Democracies are therefore keen to make voting secret to ensure freedom of choice on the one hand, and to deter voters from danger, or at least to relieve them of the embarrassment of public vote on the other hand.

## **(2) Equality between the candidates in the election campaigning**

The fairness of the elections requires ensuring the principle of equality between candidates in the electoral campaign to enable them to present their programs and electoral plans to the electorate, without favoring each other at the expense of others in order to ensure equality of opportunity among all candidates.

## **(3) Prevent the pressure and influence on voters:**

Voters are used to influence the conduct and results of the electoral process significantly in developing

countries where police or local administration forces force voters to vote for some candidates using promising and reassuring methods such as appointment or denial of jobs or preventing voters from casting their votes some cases. But in other cases it leads to the arrest of some voters and representatives of the candidates to terrorize the rest of the voters.

#### **(4) No tearing up the electoral districts**

The way to tear down the constituencies is seen as a follow-up method - which is used by the government or the parliamentary majority to direct the results of the elections to the benefit of its candidates by splitting the constituencies loyal to their political opponents and splitting them into various circles in which they become a minority or assembling them in large circles compared to the size of the constituencies loyal to their supporters. Reduce the number of constituencies won by the opposition, and increase the number of its candidates.

## **(5) Judicial supervision on elections:**

Judicial supervision of the elections - presidential or legislative - is one of the most comprehensive guarantees guaranteeing the integrity of the electoral process so that its results will reflect the true will of the electorate and representative of all the political and intellectual currents within the state, which can only be achieved through judicial supervision throughout the electoral process.

The judges, by virtue of their impartiality and independence, and by virtue of their legal composition, have breathed in the spirit of justice, which makes them more capable of carrying out the task of supervising the process without distorting the conscience of society and the integrity of justice.

## **Subsection4: Election systems**

Electoral systems vary depending on different political, economic, social and cultural circumstances of each country.

Each country takes a system that it considers more appropriate to its circumstances, on the one hand, and which makes parliament representation of the people closer to reality on the other.

The electoral systems are meant to be a system of direct and indirect elections, individual and list elections, majority and proportional representation, which we will explain successively in three branches.

### **(1) Direct election and indirect election**

Direct election is the electoral system in which voters elect their representatives or governors directly without a means, which is called the election of one degree.

The indirect election is the electoral system, where the role of voters is limited to the selection of delegates who, on their behalf, choose Referees or members of parliament, and indirect election may be two or more degrees. If the election is two degrees, the selection of referees and deputies is in the hands of second-class voters ... any delegates chosen by the first-class voters, but if the election is at three levels, the selection of referees and deputies is in the hands of the third-class voters in the second degree.

## **(2) Individual election and list election**

Individual election can be defined as the electoral system according to which the state is divided into relatively small and numerous constituencies, so that each voter has one vote cast for one of the candidates.

The election on the list means the electoral system in which the state is divided into circles the governorate is considered an electoral district - so that each voter has a



number of votes equal to the number of deputies to be elected in each constituency.

In the individual election, the voter has a vote to give to one of the candidates, unlike the election on the list, in which the votes of each voter are multiplied according to the number of deputies determined by the law for each constituency, where the voter makes a list of the candidates who have chosen him.

However, the selection in the list does not take a single picture in practical reality, but takes one of three images in closed list systems, merged lists, and preferential lists.

### **(3) Majority system and proportional representation system**

#### **a) Election by majority**

The election can be defined by a majority as the electoral system according to which the candidate or the

candidates who obtained the majority of the valid votes for the voters in the electoral district are elected ... In the individual electoral system, the candidate of the electoral district receives the majority of the votes.

In the election on the list, the list that obtained the majority of the valid votes shall win all the seats allocated to the constituency.

### **b) The proportional representation system**

The system of proportional representation is one of the best electoral systems to represent all political and intellectual currents within the state ... It is applied only under the adoption of the list system without the individual election, where there is an inevitable correlation between the system of proportional representation and the list system.

The method of proportional representation is that the seats allocated to each constituency are allocated to the

competing lists by the number of votes obtained by each. In the case of winning parliamentary seats, the list that obtained the absolute or simple majority, as in the majority system, Between the number of valid votes obtained by each list compared to the rest of the other lists ... This ensures the representation of all currents and political parties within the state.

## Vocabulary of

### (Chapter 2- Section

3)

A

A regular ballot

إجراء اقتراع منتظم

Accompany

مرافقة

Allocated

تخصيص

Approaching reality

تقترب من الواقع

As far as expansion

بقدر التوسع

Assault

اعتداء

Authoritarian

استبدادي

B

Backdoor

الباب الخلفي

Ballots

اقتراع

Boost

تعزيز

Broaden the base

|                    |               |                        |  |
|--------------------|---------------|------------------------|--|
|                    | توسيع القاعدة | الصالح العام           |  |
| By virtue of       |               | Commonplace            |  |
|                    | بفضل          | مألوف                  |  |
| <b>C</b>           |               | Competencies           |  |
| Certain tax        |               | كفاءات                 |  |
|                    | ضريبة معينة   | Competing parties      |  |
| Circuit supporters |               | الأحزاب المتنافسة      |  |
|                    | أنصار الدائرة | Components             |  |
| Citizenship        |               | مكونات                 |  |
|                    | المواطنة      | Conservative political |  |
| Close link         |               | سياسة متحفظة           |  |
|                    | رابط وثيق     | Constituency seats     |  |
| Common good        |               |                        |  |

|                          |                           |
|--------------------------|---------------------------|
| مقاعد الدائرة الانتخابية | Crimes Secretariat        |
| Contemporary democracy   | جرائم الأمانة             |
| الديمقراطية المعاصرة     | <b>D</b>                  |
| Convalesce               | Danger ominous            |
| Convicted                | Dangerous political right |
| المحكوم عليه             | حق سياسي خطير             |
| Convicts                 | Deliberately              |
| محكومين                  | عن عمد                    |
| Convincing               | Democratic gone           |
| مقنع                     | ذهاب الديمقراطية          |
| Correlation              | Denial                    |
| علاقة مترابطة            | إنكار                     |

Deprive

استغناء

يحرّم

Dispersed

Depriving of military

مشتت

personnel

Distort

حرمان العسكريين

شوه

Devolution

Doctrinal debate

تفويض

نقاش عقائدي

Direct election and indirect

E

election

Eighteen Gregorian years

الانتخابات المباشرة وغير المباشرة

ثمانية عشر عاماً ميلادياً

Disabilities

Election majority

الإعاقة

الأغلبية الانتخابية

Dispensing

Election systems

|                      |                                 |
|----------------------|---------------------------------|
| نظم الانتخابات       | يعرض للخطر                      |
| Electoral list       | Engaging                        |
| القائمة الانتخابية   | جذاب                            |
| Electoral propaganda | Entails                         |
| الدعاية الانتخابية   | يتضمن                           |
| Embarrassment        | Entrusted                       |
| مشاكل مالية          | عهد                             |
| Embezzlement         | Equality between the            |
| اختلاس               | candidates in the election      |
| Enables them to      | campaigning                     |
| تمكنوا من            | المساواة بين المرشحين في الحملة |
| Endanger             | الانتخابية                      |
|                      | Estimate                        |



|                    |                |                       |
|--------------------|----------------|-----------------------|
|                    | تقدير          | تزویر                 |
| Exposure to        |                | Fragmentation         |
|                    | التعرض لـ      | تجزئة                 |
| <b>F</b>           |                | Fraud                 |
| Fairness           |                | تزویر                 |
|                    | عدل            | Fulfill               |
| Financial capacity |                | ينجز                  |
|                    | القدرة المالية | Fundamental guarantee |
| Force prevail      |                | ضمانة أساسية          |
|                    | القوة تسود     | <b>G</b>              |
| Foreigners         |                | Gender                |
|                    | أجانب          | الجنس                 |
| Forgery            |                | Good things           |

|                         |                         |
|-------------------------|-------------------------|
| أشياء جيدة              | نزاهة                   |
| Granted to young people | Implies                 |
| الممنوحة للشباب         | يدل                     |
| Guardians of justice    | Incompatibility         |
| أوصياء العدالة          | عدم توافق               |
| Guests                  | Inconsistent            |
| ضيوف                    | تتعارض                  |
| <b>I</b>                | Indecent assault        |
| Illiterate              | هتك العرض               |
| أُمِّي                  | Indirect election       |
| Impairments             | الانتخابات غير المباشرة |
| ضعف                     | Inevitable system       |
| Impartiality            |                         |

نظام لا مفر منه

Inherent right

حق الأصل

Inherently temporary

مؤقتة بطبيعتها

Inheritance

ميراث

Integrity

النزاهة

Intellectual currents

التيارات الفكرية

Intervention

تدخل قضائي

Intimidation

تخويف

J

Judge things

حكم الأشياء

Judicial supervision on  
elections

الإشراف القضائي على الانتخابات

Jurisprudential believes

اعتقادات فقهية

Justified

مسوغ

L

|                                  |                  |                                    |
|----------------------------------|------------------|------------------------------------|
|                                  |                  | representation system              |
| Landless                         |                  | نظام الأغلبية ونظام التمثيل النسبي |
|                                  | مُعدمين          | Mental capacity                    |
| Large circles                    |                  | القدرة العقلية                     |
|                                  | دوائر كبيرة      | Mental disabilities                |
| Legal entity                     |                  | الإعاقة العقلية                    |
|                                  | كيان قانوني      | Military – man                     |
| Literary validity                |                  | رجل عسكري                          |
|                                  | الصلاحية الأدبية | Misused                            |
| Loyalty                          |                  | سوء الاستخدام                      |
|                                  | وفاء             | Mitigate                           |
|                                  |                  | تخفيف                              |
| Majority system and proportional |                  | Monopoly                           |

M

|                                       |                          |
|---------------------------------------|--------------------------|
| احتكار                                | Obedience                |
| Moral validity                        | طاعة                     |
| الصلاحية الأخلاقية                    | Of twenty calendar years |
| Motive for                            | عشرين سنة تقويمية        |
| N الدافع لـ                           | Opportunities            |
| Nationality                           | فُرص                     |
| الجنسية                               | Opposition wins          |
| No tearing up the electoral districts | فوز المعارضة             |
| عدم تمزيق الدوائر الانتخابية          | Overseeing               |
| Not granted                           | إشراف                    |
| لم تمنح                               | Owned by                 |
| O                                     | مملوكة من قبل            |
|                                       | P                        |

Peaceful rotation of power

التناوب السلمي للسلطة

Political and intellectual

currents

التيارات السياسية والفكرية

Political maturity

النضج السياسي

Political opponents

المعارضون السياسيون

Political rhetoric

خطاب سياسي

Political sphere

المجال السياسي

Popular participation

مشاركة شعبية

Possession

ملكية

Preferential lists

قوائم تفصيلية

Preoccupied

محتلة من قبل

Prerogative

حق

Preserve

يحفظ

Press offenses

|                                                 |                          |
|-------------------------------------------------|--------------------------|
| جرائم الصحافة                                   | أنصار                    |
| Presumption of efficiency                       | Prove                    |
| افتراض الكفاءة                                  | يثبت                     |
| Pretext                                         | Pursuant                 |
| ذريعة                                           | طبقاً                    |
| Prevent the pressure and<br>influence on voters | <div>R</div><br>Raged on |
| منع الضغط والتأثير على الناخبين                 | احتدم                    |
| Prohibition                                     | Rape                     |
| حظر                                             | اغتصاب                   |
| Proper exercise                                 | Reactionary systems      |
| الممارسة المناسبة                               | نظم رجعية                |
| Proponents                                      | Referees                 |

|                               |                       |                   |
|-------------------------------|-----------------------|-------------------|
| مراجع                         | Restrictive           | تقييد             |
| Regrouped                     |                       |                   |
| إعادة التنظيم                 | Retail                |                   |
| Represent                     |                       | تجزئة             |
| يمثل                          | Retired officers      |                   |
| Restrict election provided    |                       | الضباط المتقاعدين |
| efficiency                    | Revealed              |                   |
| تقييد الانتخاب بشرط الكفاءة   |                       | أظهرت             |
| Restrict election with        | Revenge               |                   |
| financial quorum              |                       | انتقام            |
| تقييد الانتخاب بالنصاب المالي | S                     |                   |
| Restricted                    | Scientific competence |                   |
| محدد أو مقيد                  |                       | كفاءة علمية       |



Secret voting

التصويت السري

Sentenced for

حُكم عليه

Settled

تمت تسويته

Soldiers

جنود

Specific seats

مقاعد محددة

Sponsors

الرعاة

Statement of its nature

بيان طبيعته

Stenosis

تضييق

Stipulate

ينص على

Superiority

تفوق

Synonymous

مرادف

T

Tax-payers

دافعي الضرائب

Tendency

|                                                   |                             |
|---------------------------------------------------|-----------------------------|
| نزعَة                                             | The public expenditure      |
| Terrorize                                         | الإنفاق العام               |
| إرهاب                                             | This trend                  |
| The integrity of the electoral process guarantees | هذا الاتجاه                 |
| ضمانات نزاهة العملية الانتخابية                   | U                           |
| The pretext of lack                               | Unconditionally             |
| ذريعة النقص                                       | دون قيد أو شرط              |
| The pro circles politicians                       | Undemocratic means          |
| الدوائر الموالية للسياسيين                        | وسائل غير ديموقراطية        |
| The proportional representation                   | Unity of these institutions |
| System                                            | وحدة هذه المؤسسات           |
| نظام التمثيل النسبي                               | Universal suffrage          |
|                                                   | الاقتراع العام              |

Unrestricted ballot

اقتراع غير مقيد

V

Valid votes

أصوات صالحة

View rulers

عرض الحكام

Voter profile

ملف تعريف الناخبين

Vote's public

التصويت العام

Vulnerability

W

عالي التأثير

Waived

تنازل

Wealth

ثروة

Winning parliamentary seats

الفوز بالمقاعد البرلمانية

Withstand

صمود

Women 's participation

مشاركة المرأة

Women 's right to vote

حق المرأة في التصويت



# **Chapter Three**

## **Organization of**

### **public authorities**

#### **and forms of**

##### **Governments**



## **Chapter Three**

### **Organization of public authorities and forms of Governments**

#### **In view of the principle of separation of powers**

##### **Preliminary section**

##### **The principle of separation of powers**

One of the most important rules and characteristics of the democratic system is the separation of the three powers on which the regime is based. It is the legislative authority of the parliament, which is composed of representatives of the nation, the executive branch of the government and the judiciary, and the independence of

each other in the performance of its functions, which is expressed in the principle of separation of powers. The governing body of the civilized states is based on these three powers.

The legislative authority is in the most practical order because it undertakes the development of laws; the enactment of laws precedes their implementation by the executive branch, and precedes their interpretation and application by the judiciary.

The executive branch has the most practical and numerical character. It is responsible for the implementation of laws, the preservation and disbursement of public funds, and the management and administration of public facilities.

The theory of separation between the three authorities since ancient times has received attention and has had a visible impact on the functioning of the Roman systems.



However, it did not take its exact shape before the 18th century. Montesquieu was the first to elaborate on the importance of writing the famous "spirit of laws". He believed that each authority must be completely separated from the other, not to interfere in or control the actions of others by any means; otherwise all guarantees of individual freedom would be lost.

This theory in the 18th century had a profound impact, influenced by the constitutions of the United States of America since its liberation. However, it soon faded into the nineteenth century.

Today, the most democratic regimes have appeared, and the three authorities have been intertwined with certain conditions and limits. This is not the case for what is remarkable in the system of government in England, that the executive authority, the ministry, is the authority of government and the preparation of bills, and then the ministry with its parliamentary majority can get the

approval of these laws and passed by the legislature, Between authorities has limited impact, and of course it cannot be said that freedoms have been wasted under a parliamentary system, based on the majority of parties.

Such a mix of powers also appears in the French constitution, where the ministry is always based on a parliamentary majority.

However, it is always noted that, whatever the effect of the three authorities' mixing on some citizens, the judiciary is always characterized by its complete independence. Deeply democratic nations surround the independence of the judiciary, in particular, with strong guarantees as the guardian of freedoms and rights.

Indeed, the independent judiciary in democratic countries is the pillar of justice, freedom and equality, and where the judiciary loses its independence, there is no freedom or equality, no guarantee of self or right ... The

judiciary under dictatorship is always an instrument in the hands of the executive authority , Its authority and direction as it wished in accordance with its exceptional legislation and its special animosity, and in this way it becomes a dangerous tool to strengthen injustice and tyranny.

### **Subsection 1: Montesquieu and Rousseau thought**

In his 1748 book, "The Spirit of Laws", Montesquieu expressed the principle of the separation of powers as an integral expression, which led to the association of his name with this principle to which he was attributed. In his view, the principle of separation of powers was not a legal principle in the strict sense, but a rule of policy.

The essence of Montesquieu's idea is that if one person or a single body is united by the legislative and executive branches, freedom is not. As well as if the three authorities

meet in one hand, even if they are the hands of the people. Montesquieu believes that power in the state is divided into three distinct types: the legislative function, the executive function and the judicial function. Thus, these functions are assigned to three distinct authorities, each of which is independent of each other, so that each one of these political authorities can stop the other at the limits of their task.

Meaning to prevent all authority of the other authority from misusing its authority and thus to ensure due protection of the rights and freedoms of individuals. Montesquieu expressed this meaning by saying: power ceases power so that no one can misuse its power or oppress it.

Some understood the principle of separation of powers as a complete separation, as was the case with the constitutions of some US states. The United States Constitution of 1787 was influenced by the principle of separation of powers. The men of the French Revolution embraced the principle and guaranteed it the Declaration of

Human Rights 1789. As stipulated in the Constitution of 1791 and the Constitution of the Third Year of the Republic, the French Constitution of 1848 stated that the separation of powers was the first condition of every free government. As guaranteed by the Constitution of the French Fifth Republic in 1958.

### **Subsection2: Criticism of the principle of separation of powers**

The most important criticism of the principle of separation of powers is summarized as follows:

- 1 - Some jurisprudence went on to say that this principle leads to the elimination of the idea of responsibility.
- 2 - The principle of separation of powers is based on the fact that this principle is based on historical considerations, namely, the removal of the legislative power from kings and the restriction of their powers. Which is now needed, and there is no objection to the

submission of executive power to the legislative authority, as the latter represent the people.

3 - Some have argued that the application of the principle of separation of powers does not come about. It is not possible, because the exercise of the characteristics of sovereignty by separate and independent bodies cannot be achieved. These characteristics, like those of the human body, are naturally connected.

In response to these criticisms, we note that all are based on the principle that the principle is the complete separation of powers, that is, absolute separation. In fact it is not true. The separation of powers does not mean the complete separation of them. There must be some kind of cooperation and coordination between them so that they can carry out their functions and achieve their objectives so that each authority will remain independent from the other, ensuring that no authority interferes in the affairs of others. As much power as is necessary, which allows each

authority to defend its independence from others, that each authority would be able to stop other authorities at the borders that affect its independence. All this will lead to the preservation of public freedoms and to ensure their existence.

### **Subsection3: Forms of application of that principle**

If the constitutions that take the principle of separation of powers differ in their understanding of this principle, according to the concept adopted by the legal and political jurisprudence in each of these countries, this means that the ties between the authorities are affected by the prevalent in jurisprudence.

It is recognized that the legal ties between the authorities in the state are influenced by the view adopted by the constitutional legislator in the concept of separation between these authorities.

The practical application of the principle of separation of powers has shown two distinct forms or methods: the method of complete separation of powers, and the method of separation with cooperation between authorities.

(A) In applying the method of complete separation of powers, the State regulates the authorities on the basis of complete separation between each other, particularly between the legislative and executive branches. In this case, there should be no kind of connection or communication between the authority and the other. The appointment and dismissal of the ministers will be determined by the head of the executive authority alone. Ministers will also be prevented from serving in the legislative council. Shall have the right to propose laws, and the executive branch shall not have the right to object to the laws issued by the legislative authority.



The parliament will also have full freedom to convene without inviting the head of the executive branch. The president of the executive branch has no power over the legislative authority. In contrast, the legislature does not interfere in any action that goes beyond the limits of the legislative process. For example, it cannot withdraw confidence from ministers.

In the manner of complete separation of powers, some French constitutions were adopted, and the constitutions of some of the Federal States of the United States of America were adopted in this manner.

Indeed, experience has proved the failure of this method, its application to chaos and turmoil, when every authority became like a state within the state.

(B) Having proved the experience and demonstrated practical application of the failure of the method of complete separation of powers, the States adopted a method of cooperation and coordination between the

authorities, establishing relations and mutual links between the legislative and executive branches.

These relations and ties are the right of the President of the Executive Authority to propose laws, to ratify legislation issued by the legislative authority and to issue them, and in granting the veto power to the decisions of the House of Representatives. On the other hand, we find that the House of Representatives has the right to withdraw confidence from the ministry; the ministers are accountable to him. Thus, there are many examples and examples of links that include forms of cooperation and coordination between each authority in the state.

It is noted that the constitutions vary among themselves in the amount of power granted by the legislative and executive powers. The Constitution may give the executive power greater powers and privileges than the legislature. In this case, the system of government is presidential, for the republican countries.

However, if the constitution gives the lower house a stronger and greater power than is vested in the executive, the system of government, in this case, is known as the parliamentary system or the system of the government of the parliament. If the constitution creates a balance between the authorities, the power division in cooperation between the legislative and executive branches, it is called the system of government in this case the name of the parliamentary system, which is detailed below:

**Vocabulary of**  
**(Chapter 3-**  
**Preliminary section)**

A

Accordance

مطابقة

Ancient times

عصور قديمة

Applied by the judiciary

يطبقها القضاء

Arrangement

ترتيب

Assigned to

مخصص لـ

At the border

على الحدود

B

Beyond

وراء أو خلف

Borders of its mission

حدود مهمتها

C

Chaos

فوضى

Characteristics

خصائص أو مميزات

Conferred

مُنح

Dangerous tool

أداة خطيرة

Confusion

ارتباك

Declaration of human  
rights

Convene

يجتمع

إعلان حقوق الإنسان

Cooperation

تعاون

Defend

دفاع

Coordination

تنسيق

Dictatorship

الدكتاتورية

Criticism of the principle of  
separation of powers

Diminished

تضاءل

انتقادات مبدأ الفصل بين السلطات

Distinct types

D

|             |                |                 |  |
|-------------|----------------|-----------------|--|
|             | أنواع متميزة   | احتضن           |  |
| Draft laws  |                | Ensure          |  |
|             | مشاريع القانون | التأكد من       |  |
| Duties      |                | Espoused        |  |
|             | واجبات         | يعتق            |  |
| <b>E</b>    |                | Essence         |  |
| Edited      |                | جوهر            |  |
|             | تحرير          | Experiments     |  |
| Elaboration |                | تجارب           |  |
|             | إعداد          | Explaining      |  |
| Elimination |                | شرح             |  |
|             | إزالة          | <b>F</b>        |  |
| Embraced    |                | First expansion |  |

التوسع الأول

Forms of application of  
that principle

صور تطبيق هذا المبدأ

G

Grab legislative power

انتزاع السلطة التشريعية

Grip of

قبضة

Guarantee

ضمان

H

Handedness

إنصاف

Historic

تاريخي

I

Independent bodies

هيئات مستقلة

Intended to

تهدف إلى

Interfere with

يتدخل مع

Interfere

تدخل

Interference

|                      |               |             |                |
|----------------------|---------------|-------------|----------------|
|                      | تشوش          | No existing |                |
| Intermingling        |               |             | انعدم تماماً   |
|                      | اختلاط        | Noticeable  |                |
| Invitation           |               |             | جدير بالملاحظة |
|                      | رسالة أو دعوة | Numerical   |                |
| M                    |               |             | عددي           |
| Misrepresent         |               | O           |                |
|                      | يشوه          | Objectives  |                |
| N                    |               |             | أهداف          |
| Nation 's parliament |               | Oppression  |                |
|                      | برلمان الأمة  |             | ظلم            |
| Necessity            |               | Orientation |                |
|                      | ضرورة         |             | اتجاه          |



P

Partisan majority

أغلبية حزبية

Practicing

ممارسة

Predominantly partisan  
parliamentary

حزب الأغلبية في البرلمان

Preservation

حفظ

Presidential system

النظام الرئاسي

Previously implemented

نفذت مسبقاً

Previously interpreted

سبق تفسيرها

Profound impact

تأثير عميق

Public funds

الأموال العامة

Public utilities

مرافق عامة

R

Reciprocal links

اتصالات متبادلة

Refrain

Released

امتنع

Released

صدر

Republican system

النظام الجمهوري

S

Secure

تأمين

Special desires

رغبات خاصة

Spending

إنفاق

Spirit of laws

روح القوانين

Stipulated

المنصوص عليه

Strict sense

حس مباشر

Subordination

تبعية

Surrounded

مُحاط بـ

T

Think of Montesquieu and

Rousseau

فكر مونتسكيو و روسو

U

Undertake

حريات ضائعة

تعهد



Withdraw confidence from  
ministers

Visible impact

سحب الثقة من الوزراء

تأثير مرئي



Wasted freedoms



## **Section1**

### **Parliamentary system**

The parliamentary system is the ideal image to express the principle of separation between the authorities in the proper sense, which means separation between the legislative and executive authorities with the establishment of a kind of cooperation and balance and mutual control between them.

This is necessitated by the necessities of practical reality to ensure good governance of public affairs within the state including the world is good for both the homeland and the citizens.

The parliamentary system is a middle image between the two presidential systems and the government system of the Assembly. The presidential government embraces the principle of total separation of powers, as in the

United States of America, which is a prominent example of this form of government in our contemporary world. The legislative government is taking a middle position between the two presidential governments and the government of the association so as to give the legislative and executive authorities powers exercised without other interfering in their affairs, with a degree of cooperation and balance between them so that it does not reach the complete separation between them fairly.

In order to say that there is a parliamentary system, there is a need for a number of elements:

- (1) The existence of an elected parliament.
- (2) Dual executive power.
- (3) Cooperation and balance between the legislative and executive authorities.

## **Subsection 1: Elected parliament**

The elected parliament represents the essence of the parliamentary government and its pivotal axis without which there is no power. There must be a parliament elected by the people exercising real powers. This does not mean that the presidential government or the government of the Assembly does not have elected parliaments, but there are parliaments elected by these governments.

The aim is that the status of parliament differs in the parliamentary government, like its counterparts in the presidential government and the government of the Assembly in terms of the application of the principle of separation between the legislative and executive.

The Parliament may consist of one or two Councils according to the circumstances of each State. If it consists of a single Council, this Council shall be elected in a majority. If it consists of two chambers, one of them shall

be fully elected, and concerned, provided that the elected elements prevail so that the Parliament is truly representative of the people. In this case, the Government is asked before the elected Council in a group without the other, as in the United Kingdom, where the British is asked to the British House of Commons without the House of Lords The queen is so fully labeled as a board of directors except as a metaphor because he has no representation of the people except the name only.

### **(1) Functions of Parliament**

Parliament plays a number of legislative, financial and regulatory functions in parliamentary governments. The legislative function takes the lead among the functions of the parliament, from which the name of the legislature has been derived and removed to parliament. In addition to the legislative function, Parliament exercises a financial function in which the imposition of public taxes is imposed, which is imposed only by law, as



well as the approval of the general budget of the state and approval of it.

Finally, Parliament exercises a supervisory function on the performance of the government. This supervisory function is the most important characteristic of parliamentary governments, as it is exercised by parliaments only in parliamentary governments without presidential.

### **A) Legislative function**

The legislative function is at the forefront of the functions of the parliament. The name of the legislature has been derived and taken to parliament, although it appeared at a later stage in the financial function, which was the first function of parliament.

The legislative function is the authority of Parliament in enacting the various laws governing the various relations within the civil society, including commercial,

administrative ... and others. It is the parliament that proposes the draft laws, which it endorses.

If the legislative function is the most important functions of the parliament, it does not participate in it, but it is shared by the executive authority in its practice. The law recognizes the executive authority the right to propose laws and submit their projects to the parliament as the most abhorrent to the practical requirements of legislative requirements ... The right to propose laws like the parliament ... If the executive has the right to propose laws, its role depends at this point where the Parliament then discuss these proposals and approval, the President of the process of issuing legislation and published in the newspaper The official after approval by Parliament.

## **B) Financial function**

The financial function is the first function historically exercised by parliaments, where parliaments have been formed to approve the approval of the taxes requested by

the rulers, and with the development of the parliamentary system, the Parliament's financial authorities have expanded and has the authority to control all matters relating to the state's finances, Discussing and approving the general budget of the state.

Through the examination and discussion of the general budget by the parliament, the discussion discusses the policy of the government in various aspects of political, economic, social and cultural ... and others, which allows members of Parliament to make their views and proposals in this regard.

The parliament's financial power is not limited to approving the general budget of the state, but extends to the approval of additional appropriations required by the government, so that the latter cannot spend any appropriations unless approved by the parliament ... On the other hand, the parliament cannot make financial adjustments On the budget items only with the approval

of the government, especially when it comes to increasing budget items.

The financial function of the parliament is related to the establishment, amendment or cancellation of public taxes. This is a matter that cannot be regulated except by law.

### **C) The oversight function**

The supervisory function is one of the most important functions exercised by parliaments in the parliamentary governments. The parliament, through a variety of means, monitors the performance of the government and its various agencies and holds them accountable for their shortcomings in their implementation of public policy.

The Parliament monitors the work of the Government and reviews it to ensure that all its actions are carried out within the limits of the law, and conforms to the constitutional principles recognized in the public interest.

The parliament, through exercising its supervisory function, can hold the government accountable politically so that the government - the ministry - is accountable to the parliament ... that responsibility, which is the cornerstone of parliamentary governments and one of its foundations and core elements without which it is without them.

Parliament exercises the supervisory function over the performance of the government and its various agencies through a range of supervisory means, such as questions and interrogations, and parliamentary commissions of inquiry, which we are dealing with in a nutshell.

### ***(1) - Question***

The question is the weakest means of control at all, since it is merely a clarification of a matter or a query on this matter provided that this matter concerns the public affairs of the state.

Therefore, the question may not be related to the personal interest of an introduction or personal matter to whom.

The main thing that distinguishes the question as a supervisory measure is that it has limited impact. In the sense that it does not entail a broad discussion of the parties, and does not lead to raise the issue of confidence in the ministry ... but just ask for some vague things that are ignorant of the Member of Parliament and wants clarification from the competent minister on them.

The question may end once the Minister replied to the Deputy the question and the last conviction of his answer, and may need further clarification, the Minister will respond to this until the Member of Parliament is convinced that he is not entitled to comment on what the Minister has expressed, but the question ends at this limit.

## ***(2) - Interrogation***

The interrogation is the strongest and most dangerous means of control at all because it carries the accusation of the minister questioned by negligence and negligence in the performance of the functions of his ministry ... This may lead to public discussions leading to the withdrawal of confidence from the minister and overthrow him - as well as for the ministry as a whole when suspended questioning the policy of the ministry Combined.

Interrogation leads to public debate to which any member of parliament is entitled to participate. Where the discussion ends with the Council taking a decision on the subject of questioning ... This decision may be in the interest of the Ministry - or the Minister - or against it, which could lead to the withdrawal of confidence from the ministry and overthrow.

### ***(3) - Parliamentary investigation***

Parliamentary Inquiry means the right of the Parliament to entrust a committee composed of a number of its members, called the Fact-finding Committee, to investigate a particular matter related to an annex of public facilities, a ministry, a public interest, a local administration unit, In order to ascertain the truth about the financial, administrative or economic conditions and conditions in relation to the subject or body for which the Commission was formed, to conduct investigations into any matter relating to any of the preceding acts, or law Public talents of the state.

After the Commission completes its work, it prepares a report with the result of its findings and submits it to the Parliament to take whatever it deems appropriate.

The Parliament's authority to investigate - through fact-finding committees - thus enables the Parliament to identify shortcomings in the performance of the



government and its executive agencies. It can also identify the shortcomings of financial expenditure and the good or mismanagement of public funds, as well as the extent to which the ministry and its agencies failed to implement the public policy and the general plan of the state.

### **Subsection2: Dual executive power**

The parliamentary government is characterized by a basic feature that distinguishes it from the presidential government and the government of the Assembly, and represents the cornerstone of the existence of that government, namely the bilateral executive authority ... where there are at the top of the executive authority two elements of the head of state is not politically responsible.

The head of state in parliamentary governments is not unique to executive power, but is shared by the prime minister, the prime minister and ministers. Thus, the

parliamentary government is distinguished by the presence of two different people at the top of the executive branch: the head of state and the prime minister.

### **(1) The Head of State**

The head of state in the parliamentary government is one of the elements of the executive authority ... The most important thing that distinguishes the situation of the head of state in this form of government is the lack of political responsibility before the parliament, where the ministry bears that responsibility.

This rule is found in the historical development of the parliamentary government in England, the birthplace of the parliamentary system in the world, which was based on the saying that the king is not mistaken and therefore not responsible ... which must be the presence of another body that bears political responsibility for matters of

governance before Parliament ... and that body is the ministry or the Council of Ministers.

Not only are the royal regimes irresponsible for the political responsibility of the head of state, but also for criminal irresponsibility, where the king is not criminally responsible for the crimes he commits. The same is inviolable, while the head of state in republican systems asks for his actions and constitute criminal offenses that are punishable whether they relate to acts of his or her function as a crime of treason or ordinary crimes.

The lack of political responsibility of the head of state in the parliamentary governments entails the actual transfer of power in the conduct of state affairs to the ministry in charge, according to the rule "where authority is responsible, and where there is no authority, there is no responsibility." Thus, And he cannot decide on any of the matters, but leaves all of this to the ministry responsible before the Parliament ... The matter must be signed with

the Prime Minister and the Minister concerned on the signatures of the Head of State so that it can be attributed to them and take responsibility for them.

**\* The fact of the role of the head of state and his powers in the parliamentary system**

Controversy raged over the fact of the role of the head of state and the extent of his powers on matters of governance in parliamentary governments.

(1) The jurisprudence team went on to say that the role of the head of state in parliamentary governments

Is merely a purely ceremonial role in which it can provide advice and guidance to state bodies, without having to play a positive role in the conduct of governance.

(2) While another jurisprudential group directed to say that the head of state in the parliamentary system, although not working alone, and does not work only

through his ministers, it does not mean that it does not work at all or that his role is just a symbolic role or honor. But occupies a place that makes him influential in the affairs of governance depends on the strength of his personality. Where the head of state has the authority to choose the prime minister and tasked to form a ministry.

And some others of the supporters of this trend that the head of state exercised another power is the right to resolve ... any solution to the parliament when the dispute rages between the ministry and parliament, the first resort "the ministry" to the head of state and ask him to dissolve the parliament ... Here the head of state has the use of weapon solution in the face of parliament and the call for early legislative elections.

In fact, determining the role of the head of state in parliamentary systems - parliamentary governments - does not depend on pure legal consideration, but is determined in light of practical considerations and the

political and historical circumstances of each society. Therefore, the purely parliamentary system has been formed by the political and historical circumstances of British society, culminating in the stability of the principle that the king reigns and does not rule, so does not exercise any real powers in the field of governance, where the ministry takes the task and ask them before the parliament.

By contrast, other parliamentary systems such as the French system, and by political and historical circumstances of its own, entitle the head of state to excessive powers in the field of government, which is a departure from the theoretical and traditional concept of the parliamentary government.

## **(2) The responsible ministry**

The Ministry represents the second wing of the executive branch in the parliamentary governments - which is characterized by the two branches of the

executive - and it is the cornerstone and the focus of in this form of government, where the existence of a ministry that has power and hegemony over the reins of government as the core element of that government provided that it is responsible for all its actions before Parliament.

The head of state in the parliamentary governments does not exercise - according to the origin - effective powers as these powers are transferred to the ministers who are entrusted with the development of the general policy of the government and oversee the implementation on the ground by forming a collective body homogeneous, working to achieve harmony between the work of ministries, The Ministry or the Council of Ministers consisting of the Prime Minister - or the Chief Minister as called in France - and a number of Ministers shall be politically responsible before Parliament.

Political responsibility, as we have said, is the cornerstone of a parliamentary system without which there is no basis.

= Political responsibility takes two forms:

### **A) Individual responsibility**

It is the responsibility of each minister separately for the actions of his ministry, which do not fall under the general policy of the Council of Ministers, whether issued by him personally, or issued by his staff and subordinates to his presidency.

The movement of the individual responsibility of one of the Ministers before the Parliament will lead to the resignation of this Minister only from the work of his ministry without the rest of the ministers - that is, the submission of this Minister for his resignation.



## **B) Corporate responsibility**

It is the collective responsibility of the ministry, as a body with an independent constitutional entity and a collective will committed to pursuing a single policy in the administration of the government, to be asked before the parliament, where the ministers are asked about their implementation of the ministry's policy, not individual ministers. Solidarity is the most important characteristic of the parliamentary government, which is unique to other governments.

The report on corporate responsibility entails the resignation of the entire ministry.

### **Subsection3: Cooperation and balance between the legislative and executive branches**

The parliamentary system is based on the principle of flexible separation between the legislative and executive

authorities in order to achieve cooperation and balance in the exercise of their constitutional powers and competences in the interest of the public ... so that the distribution of competencies between these two authorities on the basis of cooperation and participation in the practice of some specialists, Vis-à-vis the other means of control aimed at achieving a balance between them so as not to be subject to one another in a manner contrary to the essence of the parliamentary system.

The picture of cooperation and balance between the legislative and executive authorities varies as follows:

### **(1) Aspects of cooperation between the legislative and executive branches**

The core of the parliamentary system, as we have said, is its application of the principle of the separation of powers in a flexible manner that achieves a degree of cooperation between the legislative and executive

branches in the exercise of some of their constitutional powers and functions.

### **A) Assist of the executive branch to the legislative authority**

The assistance of the executive branch of the legislative authority is reflected, inter alia:

- Although the legislative function is an inherent competence of the parliament, the executive branch cooperates and participates in the exercise of this jurisdiction, it has the right to initiate the right to propose laws, but often the bulk of the legislation issued by the parliament of the government's proposal as - by virtue of direct contact with the public - the legislative requirements and the needs of the daily relations between the people of each other, or in their relations with the organs of governance and administration of the laws governing those relations.

- The Executive Authority, represented by the Head of State, shall ratify and issue laws.
- Issuing regulatory decisions in certain cases related to the legislative sphere, as in the Egyptian constitutional system, which authorizes the Head of State to issue the powers and regulations of necessity in accordance with Articles 108 and 147 of the 1971 Constitution.
- In addition to cooperation in the field of legislation, the executive branch has the right to invite parliament to convene either for ordinary or extraordinary sessions, or to adjourn the meeting.
- In addition to the right of ministers in the parliamentary system to combine the membership of the ministry and the parliament, so that they may attend parliamentary sessions and participate in proposing and discussing bills, as well as defending the ministry's policy and participating in voting on the adoption of various laws.

## **B) Assistant of the legislative branch to the executive authority**

The picture of this cooperation is reflected in the adoption of the general budget by the parliament, which enables the government to implement its plans and programs, ratify the international treaties it concludes, and authorize the government to act as a minister.

## **(2) Manifestations of balance between the legislative and executive branches**

The essence of the parliamentary system is reflected in the balance between the legislative and executive branches, where each authority has the other way to ensure this balance and prevents one from being subordinated to the other so that they stand on an equal footing ... The legislative authority has a weapon of withdrawal of confidence from the ministry and dissolution of Parliament.

## **A) Report of the political responsibility of the Ministry** **"withdrawal of confidence"**

The Parliament has control over the performance of the executive branch through various means, such as the question, the parliamentary investigation committees, and interrogations and because the interrogation carries the meaning of the accusation of default, it may lead to the report of the responsibility of the ministry when it comes to its policy.

Here the parliament has a serious weapon is to withdraw confidence from The ministry and force it to resign when it lost the confidence of parliament ... where the report of the political responsibility of the ministry and the withdrawal of confidence as a cornerstone of the basis in the parliamentary system, and the distinctive element of the presidential system.

## **B) The right of the executive branch in the dissolution of parliament**

The executive authority has the right to dissolve the parliament. The right of dissolution represents a parallel weapon to withdraw confidence from the ministry in order to ensure equality and balance between the legislative and executive authorities. Without it, the government will be without a weapon to meet and report its responsibility to parliament.

However, the intention of dissolving the parliament in this matter is the ministerial solution without the presidential solution. The solution of the government is to dissolve the parliament at the request of the ministry when the dispute rages between it and the parliament resorting to him requesting the dissolution of the House of Representatives, and here the head of state to issue a resolution to dissolve parliament and call for early legislative elections.

This is consistent with the parliamentary system. The presidential solution is that the idea of the solution stems from the head of state, contrary to the opinion of the ministry, which is contrary to the essence of the parliamentary system.



## Vocabulary of (Chapter 3- Section 1)

### A

Accountability

مساءلة

Actual powers

القوى الفعلية

Additional funds

تمويلات إضافية

Adoption

تبني

Approval

موافقة

Aspects of cooperation

between the legislative and  
executive branches

جوانب التعاون بين السلطتين

التشريعية والتنفيذية

Assist of the executive branch

to the legislative authority

معاونة السلطة التنفيذية للسلطة التشريعية

Attend

يحضر

Attributed

ينسب

### B

Bestowed

أنعم

Clarification

توضيح

Bilateral executive branch

ثنائية السلطة التنفيذية

Collectively

جماعي

Brevity

إيجاز

Commission 's work

عمل اللجنة

Budget items

بنود الموازنة

Compromise

مرونة

Bulk

حجم

Contemporary world

العالم المعاصر



Controversy

Cabinet

مجلس الوزراء

جدال

Convene

|                                                                              |                                                                                     |
|------------------------------------------------------------------------------|-------------------------------------------------------------------------------------|
| يجتمع                                                                        | مسؤولية مشتركة أو تضامنية                                                           |
| Convinced                                                                    | Cradle                                                                              |
| مقتنع                                                                        | مهد                                                                                 |
| Cooperation and balance<br>between the legislative and<br>executive branches | Criminal responsibility<br>المسؤولية الجنائية                                       |
| التعاون والتوازن بين السلطتين                                                | Criminally<br>جنائياً                                                               |
| التشريعية والتنفيذية                                                         | Culminated                                                                          |
| Core elements                                                                | تُوجت                                                                               |
| العناصر المركزية                                                             |  |
| Cornerstone                                                                  | Dangerous weapon                                                                    |
| حجر الزاوية                                                                  | سلاح خطير                                                                           |
| Corporate responsibility                                                     | Defect                                                                              |

|                             |                         |
|-----------------------------|-------------------------|
| خلل                         | خصائص مميزة             |
| Deficiencies                | Dual executive power    |
| قصور                        | ثنائية السلطة التنفيذية |
| Departure                   | Duality                 |
| مقال                        | ازدواجية                |
| Dereliction                 | E                       |
| إهمال                       | Elected parliament      |
| Derivation                  | برلمان منتخب            |
| استنتاج                     | Ensure                  |
| Dissolution                 | التأكد من               |
| حل                          | Entail                  |
| Distinctive characteristics | يستتبع                  |
|                             | Entitled                |

|               |                  |                       |                 |
|---------------|------------------|-----------------------|-----------------|
| Entity        | مخول             | Fairly                | تماماً          |
| Entrusted     | كيان             | Financial adjustments | تعديلات مالية   |
| Equal footing | عهد              | Financial function    | الوظيفة المالية |
| Essence       | على قدم المساواة | Fit on                | يصلح            |
| Exigencies    | جوهر             | Focal point           | النقطة المحورية |
| Extraordinary | الضرورات         | Forefront             | طليعة           |
|               | استثنائي         |                       |                 |

## Functions of Parliament

وظائف البرلمان

G

Gathered

جُمعت

General plan of state

الخططة العامة للدولة

General taxes

الضرائب العامة

Good conduct of public affairs

حسن سير الشؤون العامة

Good world

عالم جيد

Government 's policy

سياسة الحكومة

Granting

منح

H

Harmony

انسجام

Head of State

رئيس الدولة

Hegemony

سيطرة

Holdings

مقتنيات

Homeland



|                           |                   |                              |           |
|---------------------------|-------------------|------------------------------|-----------|
|                           | البلد الأم        | Influential center           | مركز مؤثر |
| Impeachment               |                   | Inherent jurisdiction        |           |
|                           | اتهام             | الاختصاص الأصيل              |           |
| Imposition                |                   | Inquire                      |           |
|                           | فرض               | استفسر                       |           |
| Incompatible              |                   | Inquiry parliamentary        |           |
|                           | غير متوافق        | التحقيق البرلماني            |           |
| Indictment                |                   | Interpretation               | ترجمة     |
|                           | اتهام             | Interrogation                |           |
| Individual responsibility |                   |                              | استجواب   |
|                           | المسؤولية الفردية | Issuing regulatory decisions |           |

|                      |                          |                   |                   |
|----------------------|--------------------------|-------------------|-------------------|
|                      | إصدار القرارات التنظيمية | Modify            |                   |
| L                    |                          |                   | تعديل             |
| Legislative domain   |                          | Monitor           |                   |
|                      | المجال التشريعي          |                   | مراقب             |
| Legislative function |                          | Mutual control    |                   |
|                      | الوظيفة التشريعية        |                   | السيطرة المتبادلة |
| Limited impact       |                          | Mysterious things |                   |
|                      | تأثير محدود              |                   | أشياء غامضة       |
| Loan                 |                          | N                 |                   |
|                      | قرض                      | Negligence        |                   |
| M                    |                          |                   | إهمال             |
| Mere approval        |                          | No doubt          |                   |
|                      | مجرد الموافقة            | O                 | بدون شك           |



|                                                                                     |                         |                  |                             |               |
|-------------------------------------------------------------------------------------|-------------------------|------------------|-----------------------------|---------------|
| Ordinary session                                                                    | الدورة العادية للبرلمان | حكومة برلمانية   | Parliamentary investigation | تحقيق برلماني |
| Overseeing                                                                          | الإشراف                 | النظام البرلماني | Parliamentary system        |               |
| Overthrow                                                                           | سقوط                    | مشاركة           | Participation               |               |
|  |                         |                  | Performance                 | أداء          |
| Parliament participate                                                              | المشاركة البرلمانية     |                  | Perpetrated                 | أُرتكبت       |
| Parliament stepping down                                                            | تتحي البرلمان           |                  | preserve of                 |               |
| Parliamentary government                                                            |                         |                  |                             |               |

|                             |                         |
|-----------------------------|-------------------------|
| الحفاظ عليها                | إصدار القوانين          |
| Presidential government     | Proper sense            |
| الحكومة الرئاسية            | بالمعنى السليم          |
| Previous parties commitment | Property systems        |
| التزام الأطراف السابقة      | أنظمة ملكية             |
| Pride of place              | Proposal of bills       |
| احترام المكان               | اقتراح مشروعات القوانين |
| Prime Minister              | Propose laws            |
| الوزير الأول                | اقتراح القوانين         |
| Prominent example           | Proxy                   |
| مثال بارز                   | الوكيل                  |
| Promulgation of laws        | Public - fully aware    |

|                        |                   |                     |               |
|------------------------|-------------------|---------------------|---------------|
|                        | الشعب يدرك تماماً | Racist              |               |
| Public affairs         |                   |                     | عنصري         |
|                        | الشؤون العامة     | Raging              |               |
| Public talents         |                   |                     | تحتدم         |
|                        | المواهب العامة    | Regarding           |               |
| Public utilities       |                   |                     | بخصوص         |
|                        | مرافق عامة        | Regulatory function |               |
| Publication of Gazette |                   |                     | وظيفة تنظيمية |
|                        | نشر في الجريدة    | Reins               |               |
| Q                      |                   |                     | زمام          |
| Question               |                   | Rendition           |               |
|                        | السؤال            |                     | تسليم         |
| R                      |                   | Requesting          |               |

|                                                                                     |                           |
|-------------------------------------------------------------------------------------|---------------------------|
| طلب                                                                                 | توقعات                    |
| Resign                                                                              | Stability                 |
| استقالة                                                                             | استقرار                   |
| Resolution                                                                          | Strict separation         |
| القرار                                                                              | الفصل الجامد              |
| Resorting                                                                           | Subject to his presidency |
| اللجوء                                                                              | رهناً برئاسته             |
| Responsibility of solidarity                                                        | Suggestions               |
| مسؤولية تضامنية                                                                     | اقتراحات                  |
|  | Supervisory function      |
| Shortcomings                                                                        | وظيفة إشرافية             |
| نقائص                                                                               | Swiss system              |
| Signatures                                                                          | النظام السويسري           |

Symbolic role

دور رمزي

T

Task

مهمة

The oversight function

الوظيفة الرقابية

The responsible ministry

الوزارة المسؤولة

Traditional concept

المفهوم التقليدي

Treason

خيانة

Trend

اتجاه

Truth

حقيقة

V

Varied forms

صور مختلفة

Various organs

أجهزة مختلفة

Verdict

حكم

Verify

التحقق من

Virtue of direct contact

أهمية الاتصال المباشر



Weakest regulatory means

أضعف الوسائل التنظيمية

Weapon

سلاح

Widened

اتسعت

Withdrawal of confidence

سحب الثقة

## **Section 2**

### **Presidential Government**

#### **(Presidential System)**

The presidential system is based on the "almost absolute" separation between the legislative and executive branches and the unity of the executive apparatus. Which are contrary to the characteristics of the parliamentary system, which adopts a flexible separation between the legislative and executive authorities to ensure cooperation and balance between them, and the characteristics of the system of the Council "the system of the government of the Assembly", which gives the legislative authority the lead among the other authorities.

The United States of America is the cradle of the world's presidential system, and it has moved to many countries. The views of John Locke and Montesquieu in

the separation of powers had a great influence on the authors of the Constitution of the United States of America at the Philadelphia Conference in 1787, Principle with a view to the absolute separation of powers, and the achievement of equality between them.

However, the texts they drafted resulted in an almost complete separation that allowed for some overlap in the terms of reference. The practical reality led to the superiority of the executive branch represented by the President of the Republic from the legislative authority.

We deal with the study of the presidential system by addressing its two distinct characteristics ... which are the adoption of the principle of strict separation between the authorities and the unity of the executive branch and its concentration in a president elected by the people ... which are explained in some concise terms in two subsections, respectively.



## **Subsection I: Rigid "almost absolute" separation between the authorities**

The presidential system adopts the principle of "semi-absolute" separation between the legislative and executive branches, which means separating them to the maximum extent possible, unlike the situation of the parliamentary system which espouses the principle of relative separation between these two powers or what can be called a chapter of the spirit of cooperation and balance between them.

The principle of strict separation of powers - in the eyes of the framers of the US Constitution - was a doctrine that they condemned as a fence of freedoms and a weapon against tyranny.

Thus, the powers and competences were divided between the legislative and executive branches, while ensuring the independence of the judiciary and making it the guardian of the constitution and the guardianship of these two authorities.

## **(1) The manifestations of separation and independence between the authorities**

The rigid separation between the legislative and executive branches of the presidential system is manifested in the independence of the parliament by practicing the legislative function without the participation of the executive authority in this field.

The President of the State is not entitled to propose laws, nor does he have the right to call the parliament for ordinary assembly or to dissolve it, and the right to dissolve Parliament... with no responsibility before Parliament for the implementation of that policy, does not ask the head of state or his assistants before the parliament, which does not have the right to ask questions or interrogations them, and does not have the de-confidence of them, but ask the aides President in front of the head of state alone who has appointed and exempt Of their posts. Moreover, the president's aides are not entitled

to combine their rank and membership in parliament according to the organic independence between the legislative and executive branches of the presidential system.

The independence of both the legislative and executive branches of each other in the presidential system is supported by the people. The head of state is elected by the people both directly or indirectly, thus ensuring its independence and not falling under the influence of parliament. Members of the parliament, which support their independence of the parliament in a group toward the head of state who has no solution.

## **(2) Exceptions on principle of rigid separation of powers**

The political regimes, such as the forms of governments, are not rigid theoretical molds, but rather interact with the necessities of practical reality and the need for a kind of cooperation between the public

authorities, especially the legislative and executive branches, to achieve the supreme interests of the state and its citizens.

On the presidential system, although this system is based on the principle of "semi-absolute" separation between the legislative and executive branches, the jurisprudence believes that there are a number of exceptions to this principle. These exceptions can be summarized for each of the legislative and executive authorities separately as follows:

### **A) For the legislature**

The principle agreed upon in the presidential system is the independence of the legislative authority and its monopoly on the legislative function. However, the constitutional system of the United States of America lists the exceptions to this general principle as follows:

1 - The right of the head of state to veto the laws "veto" where the Constitution authorizes the President of the Republic the right to veto the draft laws approved by the Parliament.

However, this objection does not represent an exception to the principle of separation of powers or independence of parliament because it is only an objection to the arrest is limited to the return If the parliament insists on approving this law by a two-thirds majority of its members, the effect of this objection will cease to be considered as if it was not. The president of the state will abide by the law and he and his administration will implement this law.

2 - The right of the head of state to send a letter to the parliament "Congress" at the beginning of the annual session draws attention to the legislative needs of the government. These messages initially contained general

objectives and trends, and then contained specific legislative proposals.

However, they do not amount to the draft laws submitted by the government, which are recognized in the parliamentary system, but are mere desires that do not bind the parliament or restrict it so that it has the final say. Taking them into account or ignoring them, although sometimes taking them into account.

### **B) For the executive authority**

The executive power - represented by the head of state - is in the presidential system to lay down the general policy of the state and implement it without any participation or oversight by the parliament in accordance with the principle of rigid separation of powers.

If this is the established rule, the Constitution of the United States of America has passed its provisions by

authorizing the Senate to share the executive power in some of its work, which is as follows:

1 - His right to approve the appointment of senior officials, such as ambassadors, consuls, judges of the Federal Supreme Court and Ministers of President's Assistants.

2 - The need for approval by the Senate of international treaties concluded by the President of the State by a two-thirds majority of its members.

3 - The US Constitution grants the House of Representatives the right to accuse the President of the State and his deputy, and his assistants, "advisers to the President", with the trial before the Senate. It is necessary to condemn the decision by a majority of at least two thirds of the members of the Council, in the case of committing some crimes such as treason and bribery ... and other crimes and misdemeanors.

For example, a criminal indictment of President Nixon in 1974 forced him to resign before actual charges began, following the Watergate scandal.

### **Subsection2: The unity of the executive branch and its concentration in the hands of the head of state**

The presidential system is characterized by the unity of the executive branch and its concentration in the hands of the head of state, in contrast to the parliamentary system, which is characterized by the dual executive apparatus. The essence of the presidential system is the presence of an elected head of state who sits at the top of the executive branch and combines the qualities of the head of state and the president of the actual executive authority "Which carries out the general policy of the State internally and externally and oversees its own implementation, and through its assistants or advisers,



where there is no Council of Ministers or Government as is customary in the parliamentary system.

The drafters of the US Constitution intended to elect the head of state through the people, as members of parliament, to the equality of the legislative and executive powers so that the head of state becomes in an equal position with the parliament.

However, the election of the head of state through the people and the concentration of executive power in his hands, a strong position towards the parliament.

The unity of the executive branch and its concentration in the hands of the head of state in the presidential system has the following results:

### **(1) Freedom of the head of state in the appointment and dismissal of his aides**

The head of state in the presidential system is responsible for setting the general policy of the state and

overseeing its implementation by itself. However, the necessities of the practical reality require a group of secretaries or advisors to assist him in implementing his policies, each in his own right. They are more like ministers in the parliamentary system ... That these advisers have no less independence from the head of state, is the one who appoints and isolates them, as well as directly to him for the implementation of his orders and instructions on public policy state.

If the Constitution in the United States of America requires the approval of the Senate to appoint senior officials of the federal state, including advisers to the President, has been working to leave the full freedom of the Head of State in the selection of advisers and assistants so that the role of the Senate to approve this choice and non-interference by the door Courtesy of the President.

## **(2) The absence of the Council of Ministers**

The presidential system is characterized by the absence of a council of ministers, unlike the parliamentary system. The presidential government does not know the system of the cabinet that controls the interests of the state and sets the general policy for it.

The president of the state effectively establishes and supervises the public policy of the state. The role of his assistants or advisers is limited to the implementation of his orders and instructions each in his own. The advisers of the president are not a collective body such as the cabinet, like the parliamentary government, because each of them is responsible for the affairs of a particular ministry, without any solidarity between them. Each of them works alone to implement the president's policy and orders and asks him directly about their implementation so that they do not have an independent policy on the policy of the Head of State.

## Vocabulary of

### (Chapter 3- Section

2)

A

Absence of the Council of  
Ministers

غياب مجلس الوزراء

Accountable

مسؤول

Accuse

اتهم

B

Brevity

إيجاز

Bribery

رشوة

C

Confined

حبس

Consuls

القناصل

Convene

يجتمع

Conviction

قناعة

Courtesy

مجاملة

Cradle

مهد الحضارة

Criminal charge

تهمة جنائية

D

Despotism

استبداد

Discredit

تشويه السمعة

Discretionary

متوفر

Dismissal of his aides

عزل مساعديه

Dominated by

يهيمن على

Drafters

واضعوا الدستور

Draws its general policy

يرسم السياسة العامة

Duality

ازدواجية

E

Essence

جوهر

Exempt

معفي

Extradition

اتجاهات عامة

تسليم

Granting

F

منح

Federal Supreme Court

Growing influence

المحكمة الاتحادية العليا

نفوذ متزايد

Fence

H

سياج

His aides

Forefront

مساعديه

طلبة

I

Fullest extent

Impact

أقصى حد

تأثير

G

Insisted

General trends

أصر على

Intended

مُعد

Neutral center

مركز محايد

Interfere

O

تدخل

Objection

J

اعتراض

Judges

Opposed to

القضاة

معارضة

M

Oversees its implementation

Major felonies

يشرف على تنفيذها

الجنايات الكبرى

Owed

Misdemeanors

المستحق

الجنح

P

N

Presidential Government

|                     |                        |
|---------------------|------------------------|
| الحكومة الرئاسية    | الفصل الجامد           |
| Presidential System | S                      |
| النظام الرئاسي      | Scandal                |
| Priority            | فضيحة                  |
| أفضلية              | Semi-absolute          |
| Protector           | شبه المطلق             |
| حامي                | Slightest independence |
| R                   | أدنى استقلال           |
| Recapturing         | Spirit of cooperation  |
| إعادة أسر           | روح التعاون            |
| Represented by      | Submitted by           |
| يتمثل بـ            | مقدم من                |
| Rigid separation    | Supervise              |





Targets

Texts

Theory templates

يشرف

أهداف

نصوص

قوالب نظرية

Treason

خيانة



Unity of the executive branch

وحدة السلطة التنفيذية



### **Section 3**

## **Council system "Government of the Assembly"**

The system of the Council or the system of the Government of the Assembly is based on the legislative authority being placed at the forefront among other public authorities, particularly the executive branch. This system is based on the idea of inequality between the legislative and executive bodies. The legislative authority does not play its role in the exercise of the legislative function only, but all administrative and political affairs of the State.

The government of the Assembly separates both the parliamentary government and the presidential government from the point of view of the fact that the first is controlled by the parliamentary assembly on all the branches of government so as to combine the legislative

and executive branches. There is no separation between them with cooperation and balance as in the parliamentary government, or "Semi-absolute" separation as in the presidential government, but based on the idea of integration of power and its concentration in the elected People's Assembly.

The system of the government of the Assembly stems from the idea of the unity of sovereignty in the state and its indivisibility, both in terms of its owner's representation and in terms of its practice. Therefore, the elected body - parliament - must represent the nation and express its will in all legislative and executive spheres.

However, the necessities of practical reality shift between the parliament and the exercise of the executive function, and therefore entrusted to a body of its own choice - often called the Executive Council - the Parliament appoints its members, and sets their powers and competencies, so that the executive body is merely a

subordinate to the legislative authority committed to the implementation of its policies and guidance, and ask its members politically before the parliament, which has their isolation because they are mere members of the parliament, and do not have any independence towards it. It also has to amend or abolish decisions issued by the Executive Council. This means that the government of the Assembly adopts the system of merger of the legislative and executive authorities, and the emergence of the executive branch from the legislative authority.

However, the application of the system of the government of the association in practical reality is very limited, compared to the parliamentary government and the presidential government, was adopted by only a limited number of the state as a result of the conditions of refuge as in France after the revolution of 1792 that overthrew the monarchy, and also after the collapse of the empire founded by Napoleon III, 1870, where the French

regime resorted to the adoption of the Government of the Assembly in 1871 after the isolation of the Emperor. Also applied by Turkey during the rule of Kemal Ataturk, which was characterized by absolute dictatorship.

It should be noted that the application of the system of the government of the Assembly in France and Turkey - rather than limiting the power and tyranny of the executive power through its concentration of power in the hands of the parliament elected by the people to achieve democracy and care for rights and freedoms - has come about by the tyranny of the executive power. France, followed by the tyranny of Ataturk and his dictatorship in Turkey.

However, the proper application of the system of government of the Assembly has been recognized by Switzerland since the Constitution of 1874 and its successive amendments. The Constitution of the Union takes into account the characteristics of the Government

of the Assembly - except for the right to dismiss members of the Executive Council before the expiry of their term.

The Parliament elects the members of the Executive Council consisting of seven members for a period of four years to elect annually among them the President of the Union "President of the Republic" is not distinguished from the rest of its members.

The Executive Council shall be subordinate to the Parliament, which shall be entitled to direct the orders and instructions thereof to the Council, as well as to amend or cancel its decisions. The Executive Council shall submit a statement on its work and on the status of the Union of the Parliament in each session. The Parliament may discuss this statement and direct the binding orders of the Executive Council in this regard.

If the Executive Council is thus subject to the will of the Parliament and does not enjoy any independence towards it in the Swiss system, the practical reality has led

to the Council enjoying real independence towards the Parliament to the point of directing the latter's actions. The federal character of the state, as well as the Swiss people's high cultural and political sense, made it necessary to have a strong executive authority with a great deal of stability. The re-election of the members of the Executive Council has been carried out for several times in a manner that has the enviable stability of a French jurisprudence. It also exercises its powers and competences in great freedom and independence in the manner of the texts governing the system of the Assembly's government.



**Vocabulary of**  
**(Chapter 3- Section 3)**

A

Amendments

تعديلات

Application

وضع او تطبيق

Assembly Government

حكومة الجمعية

Assets

أصول

C

Collapse

Conversion

انهيار

D

Defeat of

تحويل

Dismissal

هزيمة

Diverge from

إقالة

E

Emperor

تباعد عن

امبراطورية

Empire

امبراطورية

French regime

النظام الفرنسي

Entrusted

G

عهد

Granting

Enviably

منح

مرغوب فيه

Great deal of stability

Expiration of the period

قدر كبير من الاستقرار

انتهاء الفترة

Guidance

F

توجيه

Focus

I

تركيز

Inequality

Fragmented

عدم المساواة

مجزأة

Integration

L

Lack of enjoyment of any  
independence

عدم التمتع بأي استقلال

M

Merger

O

Overthrew

P

Practical reality

دمج

اندماج

أطاح

التطبيق العملي

R

Refuge

لجأ

Reins of power

مقاليد السلطة

Replaced by

حل محله

Representation of the owner

تمثيل المالك

Resorted

لجأ

S

Status

حالة

Subservience

خنوع

T

Text

نص

Thrust

دفع

U

Union Parliament

برلمان الاتحاد



# ***Exercises***



# **1) Complete the following sentences**

- Legislative authority responsible for .....  
  
while judicial authority responsible for.....
- The people are ..... phenomenon while the  
  
nation is ..... phenomenon.
- The territory of the State determines.....
- Components of State territory are: .....,  
  
....., .....
- Sovereignty as a unique feature of political power in  
  
the state has both ..... and ..... features.
- External sovereignty means.....

- There is ..... number of members of the public.
- There are been many theories that explain the origin of the state which are: ..... , ..... , ..... , .....
- Theocratic theories are subdivided into three theories which are: ..... , ..... , .....
- The theory of deification of rulers considers the ruler is of a divine nature, he does not derive his authority from the god because .....

- Power Theory considers that the state is of making

.....

- According to the theory of familial evolution the

..... is the first cell of society

- Theory of familial evolution has been criticized

because there are many countries grew up without

passing through the familial evolution such as

.....

- According to the democratic theories “social

contract” the transition from the life of instinct to



the life of the community has been built on

.....

- -Rousseau wasn't the first to say the social contract

theory, where preceded with two philosophers

..... , .....

- Types of states in term of sovereignty are:

..... , .....

- The full sovereign state is defined as;

.....

- Incomplete sovereign states are subdivided into three types which are; ..... , ..... , .....  
.....

- -..... is that State which is under the control of another State, which means that the subordinate state loses all its will

- Example of the dependent countries is.....

- The guardianship system is a system established by .....  
.....

- Guardianship system ) does not give sovereign States the right to sovereignty over custodian state, but only the right to .....
- States are divided in terms of shape or configuration into two types..... , .....
- A simple or unified state is a state characterized by its simple constitutional construction, where the State has ..... , ..... , .....  
.....
- Composite or compound state is defined as .....

- Images( forms) of composite state are; ..... ,  
..... , ..... , .....
- Personal Union defined as .....
- Personal Union arises for different reasons such as  
..... , .....
- Prominent examples for the Federal or Central Union  
are; ..... , .....
- Central or Federal Union is .....
- Treaty union is considered more ..... than  
personal union but ..... than actual union.

## **2) Choose the correct answer**

- ..... authority consists of the courts and judges, while ..... authority consists of the president and the cabinet.
  - a) Judicial – Legislative
  - b) Executive – Judicial
  - c) Judicial – Executive
  
- **Components of the political system are: .....**
  - a) Legislative authority - Judicial authority
  - b) Legislative authority - Judicial authority – administrative authority.
  - c) Legislative authority - Judicial authority – executive authority.
  
- **Elements or corners of the state are;**
  - a) the political people, the territory and political authority.
  - b) the people, the territory and executive authority.
  - c) the people, the territory and political authority.
  
- **The territorial sea extends between**

a) 3-12 kilometer  
12 miles

b) 3-10 miles

c) 3-  
12 miles

- ..... means the non-subordination of the state to another state.

a) External sovereignty  
sovereignty

b) internal

c) political system

- foreigners who have only the association of residence with the State fall under the term .....  
While the persons who carrying the nationality of the state fall under the term .....

a) population – nation  
population

b) people –

c) population – people

- ..... is a concept refers to individuals who have the right to practice the political rights.

a) nation

b) social people

c) political people

- ..... refer the power of the state to God. God is the source of authority in the state. He chooses the rulers who exercise the authority.

## b) Theocratic

### c) power theory

- a) social contract theories      b) democratic theories  
c) theocratic theories

a) social contract theories

## b) democratic theories

### c) theocratic theories

- a) ancient – roman                      b) ancient – Pharaonic  
c) modern - Pharaonic

a) ancient – roman

### b) ancient – Pharaonic

### c) modern - Pharaonic

- a) God - divine providence      b) people - divine providence  
c) divine providence – people

a) God - divine providence

b) people - divine

providence c) divine providence – people

- a) a democratic doctrine – population

a) a democratic doctrine – population

- b) a dictatorial doctrine – people
- c) a democratic doctrine – people

- **..... theory is one of the most widely accepted theories among the jurists.**

- a) The social contract
- b) power
- c) familial evolution

- **The social contract theory combined on behalf of the famous French philosopher ....., who presented it as a detailed presentation in his book super group called .....**

- a) Thomas Hobbes – social contract
- b) Rousseau - social contract
- c) John Locke - social contract.

- **Incomplete sovereign states are subdivided into;**

- a) independent States, protected States and Custodian States.
- b) dependent States, protected States and Custodian States.
- C) dependent States, protected States and federal States.



- **A dependent State is that State which is under the ..... of another State, while Protected State is the country that is placed under the ..... of another state.**
  - a) control – protection                      b) protection – control
  - c) control – guardianship
  
- **Personal Union arises for different reasons; it may arise through marriage, such as the union between:**
  - a) Peru, Colombia, Venezuela              b) Poland and Lithuania
  - c) the League of Arab States
  
- **..... concluded between two or more States, with a view to achieving some of the common objectives of the States members of the Union, through the establishment of a joint body called .....**
  - a) treaty union – assembly
  - b) personal union – assembly
  - c) treaty union – compound state
  
- **Example of autonomous or treaty Union is the .....**

a) United states of America    b) union between Arab states    c) former Soviet Union

- **If war originated between the member states in the central union , it called .....**  
a) international war            b) internal war c) war of defence

### **3) True of false ( and why? )**

- **Any political system consists of three authorities only. ( True of false and why? )**
- **The people are a political phenomenon while the population is a social phenomenon. ( True of false and why? )**
- **Components of State territory are; Land area), Water and territorial sea. ( True of false and why? )**

- **Water (territorial sea) includes plains, valleys, lakes and rivers. ( True of false and why? )**
- **Ground Territory includes only is the dry part of the land which left untouched state borders. ( True of false and why? )**
- **Air Territory is the air space, which is above Ground Territory. ( True of false and why? )**
- **-It is required to the presence of the state to have minimum specific area of its territory. ( True of false and why? )**
- **The theory of direct divine right explains that the ruler, though human, derives his authority from the people. ( True of false and why? )**

- According to The theory of direct divine right the ruler is of a divine nature that is chosen according to the will of the human beings. ( True of false and why? )
- The full sovereign state is that State which does not enjoy complete independence in directing its internal or external affairs, or both together. ( True of false and why? )
- Incomplete sovereign state is the state which loses its complete sovereignty. ( True of false and why? )
- A dependent State is that state which loses its full sovereignty. ( True of false and why? )
- Example of protected countries is Egypt during the Ottoman rule until 1914. ( True of false and why? )

- **The guardianship system gives sovereign States the right to sovereignty over custodian state. ( True of false and why? )**
- **States are divided in terms of shape or configuration into two types; full sovereign states and incomplete states. ( True of false and why? )**
- **In the simple state, each one of the three authorities (legislative – executive – judicial) exercising its jurisdiction over the people on a specific part of the state territory. ( True of false and why? )**
- **Personal Union is the weakest forms of Union among states because it is limited in the person of the head of state. ( True of false and why? )**
- **Personal Union is the strongest form of Union among states. ( True of false and why? )**

- **Treaty union lead to international personal courtyard of the countries of the Union. ( True of false and why? )**
- **In the Central or Federal Union, Union State, exercises some aspects of external sovereignty and some aspects of internal sovereignty. ( True of false and why? )**
- **In the Central or Federal Union, the member states in the union lose their full sovereignty external and internal. ( True of false and why? )**
- **The individuals in the central union have different nationalities ( True of false and why? )**